

HE KAW TEH APPELLANT;

AND

THE QUEEN RESPONDENT.

ON APPEAL FROM THE SUPREME COURT OF VICTORIA.

Criminal Law — Mens rea — Statutory offence — Importing prohibited imports — Having possession of prohibited imports — Whether prosecution must prove knowledge of nature and existence of commodity — Possession — Whether imports knowledge — Customs Act 1901 (Cth), s. 233B(1)(b), (c).

Section 233B(1) of the *Customs Act* 1901 (Cth) provides that: "Any person who . . . (b) imports, or attempts to import, into Australia any prohibited imports to which this section applies or exports, or attempts to export, from Australia any prohibited exports to which this section applies; or (c) without reasonable excuse (proof whereof shall lie upon him) has in his possession, or attempts to obtain possession of, any prohibited imports to which this section applies which have been imported into Australia in contravention of this Act . . . shall be guilty of an offence."

Held, by Gibbs C.J., Mason, Brennan and Dawson JJ., Wilson J. dissenting, (1) that the presumption that mens rea is required before a person can be held guilty of a grave criminal offence is not displaced in relation to s. 233B(1)(b), and the prosecution bears the onus of proving that the accused knew that he was importing a prohibited import.

Reg. v. Gardiner, [1981] Qd R. 394 and *Reg. v. Parsons*, [1983] 2 V.R. 499, overruled.

Reg. v. Sault Ste. Marie, [1978] 2 S.C.R. 1299, considered.

(2) That in a proceeding under s. 233B(1)(c) the prosecution bears the onus of proving that the accused knew of the existence of the prohibited import that was in his exclusive physical control.

Reg. v. Bush, [1975] 1 N.S.W.L.R. 298; (1975), 5 A.L.R. 387, overruled.

Reg. v. Tawill, [1974] V.R. 84; *Reg. v. Rawcliffe*, [1977] 1 N.S.W.L.R. 219; *Reg. v. Kennedy* (1979), 37 F.L.R. 356; 25 A.L.R. 367; *Reg. v. Ditroia and Tucci*, [1981] V.R. 247; and *Reg. v. Gardiner*, [1981] Qd R. 394; (1979), 27 A.L.R. 140, disapproved.

Poole v. Wah Min Chan (1947), 75 C.L.R. 218; *Hill v. Donohue* (1911), 13 C.L.R. 224; *Reg. v. Bull* (1974), 131 C.L.R. 203, at pp. 220-221; and *Milicevic v. Campbell* (1975), 132 C.L.R. 307, at p. 313, considered.

Per Gibbs C.J., Mason, Brennan and Dawson JJ. Where a statute makes it an offence to have possession of goods, knowledge of the accused that those goods are in his custody, in the absence of a sufficient indication of a contrary intention, will be a necessary ingredient of the offence, because the word "possession" itself necessarily imports a mental element.

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1984,
CANBERRA,
Dec. 5, 6;

1985,
BRISBANE,
July 11.

Gibbs C.J.,
Mason,
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Director of Public Prosecutions v. Brooks, [1974] A.C. 862, at p. 866;
Williams v. The Queen (1978), 140 C.L.R. 591, at p. 610; and *Reg. v. Boyesen*, [1982] A.C. 768, at pp. 773-774, followed.
Williams v. Douglas (1949), 78 C.L.R. 521, considered.
Decision of the Supreme Court of Victoria (Court of Criminal Appeal) reversed.

APPEAL from the Supreme Court of Victoria.

He Kaw Teh was charged in the County Court of Victoria with two offences — first, that on 20 October 1982 he imported into Australia 2.788 kilograms of heroin and secondly, that the same day he had in his possession without reasonable excuse the same quantity of heroin. The charges were laid under pars. (b) and (c) respectively of s. 233B(1) of the *Customs Act* 1901 (Cth). Teh had travelled by air from Kuala Lumpur to Melbourne and after he had disembarked at Melbourne airport his baggage was found to contain the heroin. Judge Tolhurst directed the jury that no specific state of mind, whether of motive, intention, knowledge or advertence need be proved by the Crown. In relation to the first count he added that if the accused established by way of defence that he had an honest and reasonable belief in a set of facts which, if they existed, would make his act innocent, that would afford a defence to the charge. He said that the accused bore the onus of establishing such a defence on the balance of probabilities and not beyond reasonable doubt. In relation to the second count, the judge directed the jury that two defences were open to the accused, namely that he had reasonable excuse for the possession and that he did not know that the goods in his possession had been imported into Australia in contravention of the Act. He said that the onus of proving either of those defences on the balance of probabilities rested on the accused. The accused was convicted and sentenced. An appeal to the Supreme Court of Victoria (Court of Criminal Appeal) was dismissed. The directions given by the judge were in accordance with two decisions that bound him and the Court of Criminal Appeal. The prisoner then applied for special leave to appeal to the High Court.

M. S. Weinberg, for the applicant. Paragraphs (c) and (ca) of s. 233B(1) of the *Customs Act* 1901 impose on the accused the burden of proving reasonable excuse. The contrast between those paragraphs and par. (b) shows that Parliament intended that mens rea had to be proved in the case of the latter. [He referred to *Beckwith v. The Queen* (1).] Proof of knowledge is required under par. (b): *Hill v. Donoghue* (2); *Irving v. Nishimura* (3); *White v.*

(1) (1976) 135 C.L.R. 569, at pp. 574-575.
(2) (1911) 13 C.L.R. 224.

(3) (1907) 5 C.L.R. 233, at pp. 236-237.

Ridley (4); *Milicevic v. Campbell* (5); and *Reg. v. Bull* (6). [He referred to *Poole v. Wah Min Chan* (7).] The word “export” in par. (c) involves knowledge: *Wesley-Smith v. Balzary* (8). There is no reason why “import” should not be treated in the same way. Paragraph (b) includes attempts, and it is established that mens rea is a part of offences of attempting to commit a crime: *Gardiner v. Akeroyd* (9). It would be odd if Parliament included in the one section an offence of strict liability and another requiring mens rea. The reasons in *Reg. v. Gardiner* (10) for holding that knowledge was not required are unsatisfactory and are inconsistent with *Cameron v. Holt* (11). To impose strict liability because of the supposed difficulty of the Crown proving knowledge smacks of expediency. [He referred to *Reg. v. Shin Nan Yong* (12) and *Reg. v. Kelly* (13).] On par. (c), *Reg. v. Bush* (14) should be overruled. It places too much weight on the words “without reasonable excuse”. They were not intended to include proof of lack of knowledge. Absence of knowledge is not reasonable excuse. It is more fundamental. Absence of knowledge denies the fact of possession. There is still scope on this view for the words “without reasonable excuse”. “Possession” involves knowledge: *Williams v. The Queen* (15).

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P. H. Clark (with him *R. R. S. Tracy*), for the respondent. Section 233B is designed to protect the public health. The offences involve strict liability: *Irving v. Nishimura* (16); and *Poole v. Wah Min Chan* (17). [He referred to *Lanham v. Brake* (18).] The mental element involved in “possession” extends no further than the intention inherent in the de facto possession of goods — that is to say the intention to have exclusive physical control of them: *Williams v. Douglas* (19). *Reg. v. Bush* (14) has been followed in other States and should not be disturbed: *Reg. v. Kennedy* (20); *Reg. v. Ditroia and Tucci* (21). [He referred to *Reg. v. Rawcliffe* (22); *Reg.*

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| (4) (1977) 140 C.L.R. 342, at p. 359. | (14) [1975] 1 N.S.W.L.R. 298; (1975) 5 A.L.R. 387. |
| (5) (1975) 132 C.L.R. 307, at p. 313. | (15) (1977) 140 C.L.R. 591, at p. 610. |
| (6) (1974) 131 C.L.R. 203, at p. 254. | (16) (1907) 5 C.L.R. 233, at p. 237. |
| (7) (1947) 75 C.L.R. 218. | (17) (1947) 75 C.L.R., at pp. 227, 232. |
| (8) (1977) 14 A.L.R. 681, at p. 688. | (18) (1983) 34 S.A.S.R. 578; 52 A.L.R. 351. |
| (9) [1952] 2 Q.B. 743. | (19) (1949) 78 C.L.R. 521. |
| (10) [1981] Qd R. 394; (1979) 27 A.L.R. 140. | (20) (1979) 37 F.L.R. 356; 25 A.L.R. 367. |
| (11) (1980) 142 C.L.R. 342, at pp. 346, 348. | (21) [1981] V.R. 247. |
| (12) (1975) 7 A.L.R. 271. | (22) [1977] 1 N.S.W.L.R. 219. |
| (13) (1975) 24 F.L.R. 441. | |

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v. *Tawill* (23); *Reg. v. Daher* (24); and *Forbes v. Traders' Finance Corporation Ltd.* (25).]

[BRENNAN J. referred to *Gammon Ltd. v. Attorney-General (Hong Kong)* (26).]

Under s. 233B(1)(b) the prosecution does not have to prove that the accused knew he was in fact importing narcotics. *Reg. v. Gardiner* (27) and *Reg. v. Parsons* (28) are correct.

M. S. Weinberg, in reply.

Cur. adv. vult.

1985, July 1.

The following written judgments were delivered:—

GIBBS C.J. The applicant was charged in the County Court of Victoria with two offences — first, that on 20 October 1982 he imported into Australia 2.788 kilograms of heroin and secondly, that on the same date he had in his possession without reasonable excuse the same quantity of heroin. The charges were laid under pars. (b) and (c) respectively of s. 233B(1) of the *Customs Act* 1901 (Cth), as amended. The facts were within a short compass and of a familiar description. The applicant had travelled by air from Kuala Lumpur to Melbourne and after he had disembarked at the Melbourne airport his baggage was inspected by Customs officials. In the course of the inspection he was found to be in possession of a bag which contained in a false bottom the heroin which was the basis of both the charges laid against him. In relation to both counts the learned trial judge directed the jury that no specific state of mind, whether of motive, intention, knowledge or advertence need be proved by the Crown. In relation to the first count he added that if the accused established by way of defence that he had an honest and reasonable belief in a set of facts which if they existed would make his act innocent that would afford a defence to the charge. He said that the accused bore the onus of establishing such a defence, on the balance of probabilities and not beyond reasonable doubt. In relation to the second count, the learned trial judge directed the jury that two defences were open to the accused, viz., that he had reasonable excuse for the possession and that he did not know that the goods in his possession had been imported into Australia in contravention of the *Customs Act*. He said that the onus of proving either of those defences on the balance of probabilities rested on the

(23) [1974] V.R. 84, at p. 88.

(24) [1981] 2 N.S.W.L.R. 669.

(25) (1971) 126 C.L.R. 429, at p. 439.

(26) [1985] 1 A.C. 1.

(27) [1981] Qd R. 394.

(28) [1983] 2 V.R. 499.

accused. The applicant was convicted and sentenced. He appealed to the Full Court of the Supreme Court of Victoria. It was conceded that the directions given by the learned trial judge were in accordance with two decisions that bound the Supreme Court — in relation to the first charge, *Reg. v. Parsons* (29), and in relation to the second, *Reg. v. Ditroia and Tucci* (30). The appeal was accordingly dismissed. The applicant now seeks special leave to appeal to this Court.

Section 233B(1), so far as it is material to the present case, provides as follows:

“Any person who—

- (b) imports, or attempts to import, into Australia any prohibited imports to which this section applies or exports, or attempts to export, from Australia any prohibited exports to which this section applies; or
- (c) without reasonable excuse (proof whereof shall lie upon him) has in his possession, or attempts to obtain possession of, any prohibited imports to which this section applies which have been imported into Australia in contravention of this Act;

...
shall be guilty of an offence.”

Sub-section (1A) of s. 233B provides as follows:

“On the prosecution of a person for an offence against the last preceding sub-section, being an offence to which paragraph (c) of that sub-section applies, it is not necessary for the prosecution to prove that the person knew that the goods in his possession or of which he attempted to obtain possession had been imported into Australia in contravention of this Act, but it is a defence if the person proves that he did not know that the goods in his possession or of which he attempted to obtain possession had been imported into Australia in contravention of this Act.”

Section 50(1) empowers the Governor-General by regulation to prohibit the importation of goods into Australia, and s. 51(1) provides that goods, the importation of which is prohibited under s. 50, are prohibited goods. By s. 233B(2), the prohibited imports to which the section applies are prohibited imports that are narcotic goods. Section 233B(3) provides that a person guilty of an offence against sub-s. (1) is punishable on conviction as provided by s. 235. Sub-sections (2) and (3) of s. 235 provide a range of penalties, depending on the quantity and nature of the narcotic goods and the antecedents of the offender; in the present case, since the narcotic goods in relation to which the offences were committed consisted of

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(29) [1983] 2 V.R. 499.

(30) [1981] V.R. 247.

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a commercial quantity of heroin, the applicant was liable to be imprisoned for life.

The argument presented on behalf of the applicant raised some fundamental questions of the law relating to criminal responsibility. It was submitted that the learned trial judge erred in directing the jury that the prosecution had no need to prove that a person charged under s. 233B(1)(b) acted with guilty knowledge — in particular with knowledge that the baggage he brought into the country contained narcotic goods. Section 233B(1)(b) does not expressly make knowledge an element of the offence. To “import” simply means to bring into the Commonwealth from abroad: see *Lyons v. Smart* (31); *Reg. v. Bull* (32). The word “import” does not carry its own connotation of knowledge or intention. If one in fact brings goods into Australia from abroad one imports them, whatever one’s intention may be and whether or not one knows their nature or quality. Paragraph (b) does not contain any words — such as “knowingly” — which themselves might reveal that the Parliament intended to make the importation of narcotics an offence only if it was intentionally or knowingly carried out; in that respect it differs from par. (d) of s. 233B(1), which makes it an offence to be “knowingly concerned” in the importation of prohibited imports that are narcotic goods.

However the provision has to be read in the light of the general principles of the common law which govern criminal responsibility. The relevant principle is stated in *Sherras v. De Rutzen* (33), as follows:

“There is a presumption that mens rea, an evil intention, or a knowledge of the wrongfulness of the act, is an essential ingredient in every offence; but that presumption is liable to be displaced either by the words of the statute creating the offence or by the subject-matter with which it deals, and both must be considered.”

There has in the past been a tendency in Australia to regard this presumption as only a weak one, at least in the case of modern regulatory statutes: *Proudman v. Dayman* (34); *Bergin v. Stack* (35). However, the principle stated in *Sherras v. De Rutzen* has more recently been reaffirmed in the Judicial Committee and the House of Lords (*Lim Chin Aik v. The Queen* (36); *Reg. v. Warner* (37) and *Gammon Ltd. v. Attorney-General (Hong Kong)* (38)) and in this

(31) (1908) 6 C.L.R. 143, at p. 150.

(32) (1974) 131 C.L.R. 203, at p. 254.

(33) [1895] 1 Q.B. 918, at p. 921.

(34) (1941) 67 C.L.R. 536, at p. 540.

(35) (1953) 88 C.L.R. 248, at p. 261.

(36) [1963] A.C. 160, at p. 173.

(37) [1969] 2 A.C. 256, at p. 272.

(38) [1985] A.C. 1, at pp. 12-13.

Court: *Cameron v. Holt* (39). The rule is not always easy to apply. Its application presents two difficulties — first, in deciding whether the Parliament intended that the forbidden conduct should be punishable even in the absence of some blameworthy state of mind and secondly, if it is held that mens rea is an element of the offence, in deciding exactly what mental state is imported by that vague expression.

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In deciding whether the presumption has been displaced by s. 233B(1)(b), and whether the Parliament intended that the offence created by that provision should have no mental ingredient, there are a number of matters to be considered. First, of course, one must have regard to the words of the statute creating the offence. The words of par. (b) of s. 233B(1) themselves contain no clear indication of Parliament's intention. However they stand in marked contrast to pars. (a), (c) and (ca) of the sub-section, all of which deal with the possession of prohibited imports in certain circumstances and all of which contain the words "without reasonable excuse (proof whereof shall lie upon him)". The absence of those words from par. (b) suggests that no reasonable excuse will avail a person who imports narcotics. That would lead to an absurdly Draconian result if it meant that a person who unwittingly brought into Australia narcotics which had been planted in his baggage might be liable to life imprisonment notwithstanding that he was completely innocent of any connexion with the narcotics and that he was unaware that he was carrying anything illicit. On the other hand, if guilty knowledge is an ingredient of the offence, it becomes understandable that no excuse should be allowed to a person who has knowingly imported narcotics. This provides an indication, although only a slight one, that by par. (b) the Parliament did not intend to displace the presumption of the common law that a blameworthy state of mind is an ingredient of the offence.

The second matter to be considered is the subject-matter with which the statute deals. Paragraph (b) of s. 233B(1) and the other paragraphs of that sub-section deal with a grave social evil which the Parliament naturally intends should be rigorously suppressed. The importation of and trade in narcotics creates a serious threat to the well-being of the Australian community. It has led to a great increase in crime, to corruption and to the ruin of innocent lives. The fact that the consequences of an offence against s. 233B(1)(b) may be so serious suggests that the Parliament may have intended to make the offence an absolute one. On the other hand, the sub-

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section does not deal with acts which "are not criminal in any real sense, but are acts which in the public interest are prohibited under a penalty", to repeat the words used in *Sherras v. De Rutzen* (40), to describe the first of the three classes of exceptions to the general rule which that case laid down. On the contrary, offences of this kind, at least where heroin in commercial quantities is involved, are truly criminal; a convicted offender is exposed to obloquy and disgrace and becomes liable to the highest penalty that may be imposed under the law. It is unlikely that the Parliament intended that the consequences of committing an offence so serious should be visited on a person who had no intention to do anything wrong and no knowledge that he was doing so.

A third consideration is that which was mentioned in *Lim Chin Aik v. The Queen* (41):

"It is pertinent also to inquire whether putting the defendant under strict liability will assist in the enforcement of the regulations. That means that there must be something he can do, directly or indirectly . . . which will promote the observance of the regulations. Unless this is so, there is no reason in penalizing him, and it cannot be inferred that the legislature imposed strict liability merely in order to find a luckless victim."

See also *Sweet v. Parsley* (42) and *Gammon Ltd. v. Attorney-General (Hong Kong)* (43). A person bringing baggage into a country can no doubt take care to ensure that no drugs are contained in it. The public interest demands that such care should be taken. There is thus an argument, the strength of which I shall later consider, in favour of the view that the Parliament may have intended to penalize importation that was no more than careless. Clearly, however, no good purpose would be served by punishing a person who had taken reasonable care and yet had unknowingly been an innocent agent to import narcotics.

These indications do not all point in the same direction, but at least they suggest the conclusion that the Parliament did not intend that the offence defined in par. (b) should be an absolute one.

The expression "mens rea" is ambiguous and imprecise. The passage which I have cited from *Sherras v. De Rutzen* (44) suggests that it means "evil intention, or a knowledge of the wrongfulness of the act". In *Iannella v. French* (45), Windeyer J. approved of the

(40) [1895] 1 Q.B., at p. 922.

(41) [1963] A.C., at p. 174.

(42) [1970] A.C. 132, at p. 163.

(43) [1985] A.C., at p. 14.

(44) [1895] 1 Q.B., at p. 921.

(45) (1968) 119 C.L.R. 84, at pp. 108-109.

statement in which Jordan C.J. in *R. v. Turnbull* (46) described the mens rea of an offender:

“... assuming his mind to be sufficiently normal for him to be capable of criminal responsibility, it is also necessary at common law for the prosecution to prove that he knew that he was doing the criminal act which is charged against him, that is, that he knew that all the facts constituting the ingredients necessary to make the act criminal were involved in what he was doing”.

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However, as Lord Diplock pointed out in *Sweet v. Parsley* (47), recklessness may be a sufficient mental element of some offences, and there is no single mental element that is common to all offences. As will be seen, it is a question whether negligence can amount to mens rea.

It can hardly be doubted that a person would not commit an offence against s. 233B(1)(b) if he did not intend to import either the narcotics themselves or the container in which they were found. The relevance of intention has been recognized in a number of cases. If goods are carried in a ship which sails within Australian territorial waters or into an Australian port, or in an aircraft which flies over Australian airspace or lands at an Australian airfield, with no intention that they should be unloaded in Australia, and they are not in fact unloaded, they will not be imported in the ordinary sense of the term: *Reg. v. Bull* (48). A person may be convicted of an offence against s. 233B(1)(b) if he despatches goods to Australia by air from a place outside Australia, with the intention that the goods should be landed in Australia: see *White v. Ridley* (49). Those cases however do not answer the question whether the offender must know what he is importing, although *White v. Ridley* proceeds on the assumption that an innocent agent — a person who does not know that he is bringing narcotic goods into the country — will not commit the offence. The critical question is whether it is enough that the offender intended to import a bag or parcel, even though he did not know what it contained, or whether knowledge of the nature, and possibly of the quality, of the prohibited thing imported is an element of the offence. Since, as I have indicated, I find it impossible to suppose that the Parliament intended to make the offence one of absolute liability, the only alternative to a requirement of guilty knowledge (by which I include wilful blindness) is that no mental state is an ingredient of the offence, but that an

(46) (1943) 44 S.R. (N.S.W.) 108, at p. 109.

(47) [1970] A.C., at p. 162.

(48) (1974) 131 C.L.R., at pp. 220, 254.

(49) (1978) 140 C.L.R. 342, esp. at p. 359.

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accused is entitled to be acquitted if he honestly and reasonably believed that he was not carrying narcotic goods.

There has developed a principle that an honest and reasonable mistake of fact will be a ground of exculpation in cases in which actual knowledge is not required as an element of an offence. This principle is founded on what was said in *Reg. v. Tolson* (50), particularly per Cave J. (51):

“At common law an honest and reasonable belief in the existence of circumstances, which, if true, would make the act for which a prisoner is indicted an innocent act has always been held to be a good defence. This doctrine is embodied in the somewhat uncouth maxim, ‘actus non facit reum, nisi mens sit rea’. Honest and reasonable mistake stands in fact on the same footing as absence of the reasoning faculty, as in infancy, or perversion of that faculty, as in lunacy.”

In *Bank of N.S.W. v. Piper* (52), their Lordships said:

“It was strongly urged by the respondent’s counsel that in order to the constitution of a crime, whether common law or statutory, there must be mens rea on the part of the accused, and that he may avoid conviction by showing that such mens did not exist. That is a proposition which their Lordships do not desire to dispute; but the questions whether a particular intent is made an element of the statutory crime, and when that is not the case, whether there was an absence of mens rea in the accused, are questions entirely different, and depend upon different considerations. In cases when the statute requires a motive to be proved as an essential element of the crime, the prosecution must fail if it is not proved. On the other hand, the absence of mens rea really consists in an honest and reasonable belief entertained by the accused of the existence of facts which, if true, would make the act charged against him innocent.”

The implications of these statements were explored in a number of cases in this Court — particularly *Maher v. Musson* (53), *Thomas v. The King* (54) and *Proudman v. Dayman* (55). In the last-mentioned case Dixon J. said (56) that even where the statute excludes the necessity for positive knowledge on the part of the accused, honest and reasonable mistake of fact will still be a ground of exculpation. He continued (57):

“The burden of establishing honest and reasonable mistake is in the first place upon the defendant and he must make it appear that he had reasonable grounds for believing in the

(50) (1889) 23 Q.B.D. 168.

(51) (1889) 23 Q.B.D., at p. 181.

(52) [1897] A.C. 383, at pp. 389-390.

(53) (1934) 52 C.L.R. 100.

(54) (1937) 59 C.L.R. 279.

(55) (1941) 67 C.L.R. 536.

(56) (1941) 67 C.L.R., at pp. 540-541.

(57) (1941) 67 C.L.R., at p. 541.

existence of a state of facts, which, if true, would take his act outside the operation of the enactment and that on those grounds he did so believe. The burden possibly may not finally rest upon him of satisfying the tribunal in cases of doubt.”

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These cases establish that if it is held that guilty knowledge is not an ingredient of an offence, it does not follow that the offence is an absolute one. A middle course, between imposing absolute liability and requiring proof of guilty knowledge or intention, is to hold that an accused will not be guilty if he acted under an honest and reasonable mistake as to the existence of facts, which, if true, would have made his act innocent. However there are a number of questions which have not been clearly answered. The first is whether the absence of an honest and reasonable belief in the existence of facts which would have made the act innocent is a form of mens rea or whether, on the other hand, an honest and reasonable mistake affords the accused a defence only when he is charged with an offence of which mens rea is not an element. A second question is whether the accused bears the onus of proving on the balance of probabilities that he acted under an honest and reasonable mistake of fact or whether it is enough if the evidence raises a reasonable doubt. Thirdly, it is a question whether the so-called defence of honest and reasonable but mistaken belief is available when the offence charged is of a truly criminal character, or whether it applies only to statutory offences of a regulatory kind.

The Supreme Court of Canada, in an important judgment, has given confident answers to these questions. In *Reg. v. Sault Ste. Marie* (58) it was held that where an offence is truly criminal the prosecution must establish a mental element, and negligence is not enough for that purpose. However, it was held, there is a middle position between cases where full mens rea is required and cases of absolute liability, namely, cases in which it is a defence for the defendant to prove, on the balance of probabilities, that he was not negligent. Prima facie, “public welfare offences”, or “regulatory offences”, are in this last-mentioned class. Dickson J., who delivered the judgment of the Court, accordingly, held that offences could be classified into three categories, as follows (59):

“1. Offences in which mens rea, consisting of some positive state of mind such as intent, knowledge, or recklessness, must be proved by the prosecution either as an inference from the nature of the act committed, or by additional evidence.

2. Offences in which there is no necessity for the prosecution to prove the existence of mens rea; the doing of the prohibited

(58) [1978] 2 S.C.R. 1299.

(59) [1978] 2 S.C.R., at pp. 1325-1326.

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act *prima facie* imports the offence, leaving it open to the accused to avoid liability by proving that he took all reasonable care. This involves consideration of what a reasonable man would have done in the circumstances. The defence will be available if the accused reasonably believed in a mistaken set of facts which, if true, would render the act or omission innocent, or if he took all reasonable steps to avoid the particular event. These offences may properly be called offences of strict liability.

3. Offences of absolute liability where it is not open to the accused to exculpate himself by showing that he was free of fault.”

The Supreme Court of Canada has further held that in cases in which the prosecution is required to prove *mens rea*, there can be no conviction if the accused honestly believed that the facts were such as to make his actions innocent, whether or not the mistake was reasonable: *Pappajohn v. The Queen* (60). It is of course clear that if guilty knowledge is an element of an offence, an honest belief, even if unreasonably based, may negative the existence of the guilty knowledge, and thus lead to an acquittal.

It appears that in *Reg. v. Tolson* (61) and *Bank of N.S.W. v. Piper* (62) the absence of *mens rea* was equated with the honest and reasonable but mistaken belief of the accused. Lord Diplock in *Sweet v. Parsley* (63), and Menzies J. in *Reg. v. Reynhoudt* (64), viewed the matter in that way. It may be that little turns on the question whether honest and reasonable mistake should be regarded as a special defence available only in cases not requiring *mens rea*, or as something the absence of which constitutes *mens rea*. The matter is largely one of words. On either view the words of the statute and the nature of the offence must be considered in deciding what mental state is required, and whether an objective test of reasonableness is to be applied together with the subjective test of whether there was a mistaken belief.

I should say immediately that if s. 233B(1)(b) does not require the prosecution to prove guilty knowledge, but has the effect that an accused is entitled to be acquitted if he acted with the honest and reasonable belief that his baggage contained no narcotic goods, in my opinion the onus of proving the absence of any such belief lies on the prosecution. *Maher v. Musson* (65) suggests the contrary, but that case was decided before *Woolmington v. Director of Public Prosecutions* (66). In *Proudman v. Dayman* (67), Dixon J. may have

(60) (1980) 14 C.R. (3d) 243.

(61) (1889) 23 Q.B.D. 168.

(62) [1897] A.C. 383.

(63) [1970] A.C., at p. 163.

(64) (1962) 107 C.L.R. 381, at p. 400.

(65) (1934) 52 C.L.R. 100.

(66) [1935] A.C. 462.

(67) (1941) 67 C.L.R., at p. 541.

intended to say that the accused bore only an evidentiary onus, but his words were somewhat equivocal, and in *Sweet v. Parsley* Lord Pearce (68) and Lord Diplock (69) understood them in different senses. In some later cases judges still spoke as though the onus of proof lay on the accused: see *Dowling v. Bowie* (70); *Bergin v. Stack* (71) and *Reg. v. Reynhoudt* (72). However it has now become more generally recognized, consistently with principle, that provided that there is evidence which raises the question the jury cannot convict unless they are satisfied that the accused did not act under the honest and reasonable mistake: see *Iannella v. French* (73); *Kidd v. Reeves* (74); *Mayer v. Marchant* (75), but cf. *Reg. v. Bonnor* (76). This view has also been accepted in New Zealand: *Reg. v. Strawbridge* (77). As I have said, it is in my opinion the correct view.

I am not sure that we can accept the opinion held in Canada that the defence of honest and reasonable but mistaken belief may be raised only in the case of regulatory offences. *Thomas v. The King* (78) dealt with a crime that was truly criminal (bigamy) and so possibly did *Reg. v. Strawbridge* (77) (the cultivation of marijuana). However it is more likely that the Parliament will have intended that full mens rea, in the sense of guilty intention or guilty knowledge, will be an element if an offence is one of a serious kind.

I have already shown that the offence created by s. 233B(1)(b) is treated by the Parliament in some circumstances as being one of the most serious in the criminal calendar. It seems improbable that the Parliament would have intended that it might be committed as a result of mere carelessness, although that would be the case if guilty knowledge was not an element, and an unreasonable although honest mistake would not be sufficient to exculpate the accused. It is true that the penalty of life imprisonment provided by the statute is a maximum one and that a judge who considered that the accused had brought in narcotic goods in the honest but unreasonable belief that his luggage did not contain them would sentence accordingly. Nevertheless, to provide that a sentence of life imprisonment might be imposed for an offence committed merely through negligence would appear to be exceedingly severe. The gravity of the offence suggests that guilty knowledge was intended to be an element of it.

Moreover, it is by no means clear that the creation of liability for

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(68) [1970] A.C., at p. 158.

(69) [1970] A.C., at p. 164.

(70) (1952) 86 C.L.R. 136, at pp. 141, 149-151.

(71) (1953) 88 C.L.R., at p. 261.

(72) (1962) 107 C.L.R., at pp. 395-396, 399-400.

(73) (1968) 119 C.L.R., at pp. 110-111.

(74) [1972] V.R. 563, at p. 565.

(75) (1973) 5 S.A.S.R. 567.

(76) [1957] V.R. 227.

(77) [1970] N.Z.L.R. 909.

(78) (1937) 59 C.L.R. 279.

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negligence would give added efficacy to the prohibition of the importation of narcotics. On any view of the effect of the section, if the suspicions of an incoming traveller are aroused, and he deliberately refrains from making any inquiries for fear that he may learn the truth, his wilful blindness may be treated as equivalent to knowledge. If he is given a bag or parcel to carry into Australia in suspicious circumstances, or if there is something suspicious about the appearance, feel or weight of his own baggage, and he deliberately fails to inquire further, the jury may well be satisfied that he wilfully shut his eyes to the probability that he was carrying narcotics and for that reason should be treated as having the necessary guilty knowledge. If he is innocent of complicity in any attempt to import narcotics, and there is nothing to arouse his suspicions, it is difficult to see what action he could be reasonably expected to take to prevent a stranger from secreting narcotics in his baggage. It would have little point to make negligence a ground of liability.

The present question was considered by the Full Court of the Supreme Court of Queensland in *Reg. v. Gardiner* (79) and that Court held, by a majority, that on a charge under s. 233B(1)(b) the prosecution was not bound to establish mens rea or to exclude the operation of "the defence of ignorance or mistake of fact" (80). The reasons given for the conclusion were summed up by Hoare J. (81), very shortly as follows:

"So far as concerns the first charge in the indictment, having regard to the subject matter of the legislation, namely narcotic goods, and the virtual impossibility of proving the state of mind of an importer of narcotic goods in the absence of admissions which would be unlikely to be made by traffickers, while there is much to be said to the contrary, it seems to me that the legislature intended to create the offence by proof of the actual importing or attempting to import . . ."

With all respect I do not consider that the fact that the legislation dealt with narcotic goods supports the view that the Parliament intended to make the offence an absolute one or to make proof of guilty knowledge unnecessary; the gravity of the offence indicates the contrary. Further I am by no means persuaded that it is virtually impossible, or even particularly difficult, to prove the state of mind of an importer of narcotic goods in the absence of admissions. If a person enters Australia carrying a suitcase which has narcotics

(79) [1981] Qd R. 394; (1979) 27 A.L.R. 140.

(80) [1981] Qd R., at p. 406; (1979) 27 A.L.R., at p. 152.

(81) [1981] Qd R., at p. 405; (1979) 27 A.L.R., at p. 151.

concealed in it, and offers no convincing explanation of the presence of the narcotics, I should be surprised if a jury would draw any inference other than that he knew that the narcotics were in the case. For these reasons I cannot agree with the conclusion which was reached on this point by the majority of the Court in *Reg. v. Gardiner* which was followed by the majority of the Supreme Court of Victoria in *Reg. v. Parsons* (82). I accordingly conclude that the presumption that mens rea is required before a person can be held guilty of a grave criminal offence is not displaced in relation to s. 233B(1)(b) of the *Customs Act* and that the prosecution on a charge under that provision bears the onus of proving that the accused knew that he was importing a narcotic substance.

The next question that falls for consideration is whether on a charge under s. 233B(1)(c) the prosecution bears the onus of proving that the accused knew that he had the narcotic goods in his possession. The question bears a different aspect from that which arises in relation to s. 233B(1)(b). The words used in s. 233B(1)(c) — “has in his possession” — in their ordinary sense connote a state of mind, in particular some awareness of the existence of the thing that was in fact in the possessor’s physical control. In *Director of Public Prosecutions v. Brooks* (83), Lord Diplock said:

“In the ordinary use of the word ‘possession’, one has in one’s possession whatever is, to one’s own knowledge, physically in one’s custody or under one’s physical control.”

In *Reg. v. Boyesen* (84), Lord Scarman said:

“Possession is a deceptively simple concept. It denotes a physical control or custody of a thing plus knowledge that you have it in your custody or control. You may possess a thing without knowing or comprehending its nature: but you do not possess it unless you know you have it.”

In *Williams v. The Queen* (85), Aickin J. said:

“It is necessary to bear in mind that in possession there is a necessary mental element of intention, involving a sufficient knowledge of the presence of the drug by the accused. No doubt in many cases custody of an object may supply sufficient evidence of possession, including the necessary mental element, but that is because the inference of knowledge may often be properly drawn from surrounding circumstances.”

See also *Reg. v. Woodrow* (86); *Reg. v. Warner* (87). I may digress

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(82) [1983] 2 V.R. 499.

(83) [1974] A.C. 862, at p. 866.

(84) [1982] A.C. 768, at pp. 773-774.

(85) (1978) 140 C.L.R. 591, at p. 610.

(86) (1846) 15 M. & W. 404, at pp. 415, 418 [153 E.R. 907, at pp. 912, 913].

(87) [1969] 2 A.C., at pp. 282, 307-308, 310-311.

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by saying that we are not concerned in the present case with the situation in which the accused knows that he has the thing in his custody but says that he does not know its nature — e.g., if he says that he thought heroin was baking soda — or its qualities — e.g., if he knew that he had in his possession a drug, but did not know which drug. In Canada it has been held that the prosecution must prove that the accused knew that the substance was a drug (*Beaver v. The Queen* (88)) but not that it was a drug of the kind mentioned in the charge: *Reg. v. Blondin* (89). There was no unanimity of opinion on this question in *Reg. v. Warner*. I need not discuss these questions further, but may add that I cannot think that in the usual run of cases questions of that kind would present much difficulty to a jury. This is a case in which, if believed, the accused was wholly ignorant that the substance was in his suitcase. Clearly, a person does not have in his possession a narcotic drug which, without his knowledge, is in his baggage or his room.

It would be a misapprehension to think that *Williams v. Douglas* (90) is authority for the view that mere physical custody, without any mental element, amounts to “possession”. There it was held that the words “possession or control” in the *Gold Buyers Act* 1921 (W.A.), as amended, meant “de facto possession and actual control” and that gold bars were in the possession of the defendant although he had hidden them in a communal bathroom some distance from his bedroom. When the Court spoke of “de facto possession and actual control” it was intended to exclude cases of constructive possession, “where the real connection of the accused with the gold was ambiguous and uncertain, and where it would not be fair to throw so great an onus upon him” (91). It was clearly not intended to suggest that a person could have possession of something of whose existence he was unaware. On the contrary, the Court in that case held that the liability of the defendant depended on whether either he, or his accomplice with his knowledge, had hidden the gold (92). In *Moors v. Burke* (93), which is discussed in *Williams v. Douglas*, the defendant was held not to be in actual possession of certain wool suspected of being stolen because he had placed the wool in a locker which was not under his control. It was decided that actual possession meant “the complete present personal physical control of the property to the exclusion of others not acting in concert with the accused” (94) but this statement did not mean,

(88) [1957] S.C.R. 531.

(89) (1970) 2 C.C.C. (2d) 118; affd.

(1971) 4 C.C.C. (2d) 566.

(90) (1949) 78 C.L.R. 521.

(91) (1949) 78 C.L.R., at p. 526.

(92) (1949) 78 C.L.R., at pp. 527, 528.

(93) (1919) 26 C.L.R. 265.

(94) (1919) 26 C.L.R., at p. 274.

and the case does not suggest, that knowledge was not a necessary element — in that case of course the defendant had full knowledge of what he had done with the wool.

The effect of the authorities to which I have referred is that where a statute makes it an offence to have possession of particular goods, knowledge by the accused that those goods are in his custody will, in the absence of a sufficient indication of a contrary intention, be a necessary ingredient of the offence, because the words describing the offence (“in his possession”) themselves necessarily import a mental element. In such a case it is unnecessary to rely on the common law presumption that mens rea is required. The question then is whether the words of the *Customs Act* contain a sufficient indication that the Parliament intended that knowledge should not be an ingredient of an offence against s. 233B(1)(c), notwithstanding the prima facie effect of the words “in his possession”. The provisions which might be thought to give such an indication are those of the clause “without reasonable excuse (proof whereof shall lie upon him)” and those of sub-s. (1A).

Before I turn to the authorities in which this question has been considered, it is useful to look at the words of the statute themselves. The words of s. 233B(1)(c), read in their ordinary grammatical sense, mean that a person commits an offence if he has narcotic goods in his possession, unless he has reasonable excuse. Plainly the words suggest that no question of reasonable excuse arises until it is proved that the accused had possession of the goods. Since possession imports knowledge, “reasonable excuse”, which falls to be considered only after possession has been proved, does not include mere lack of knowledge. Such a construction does not make the reference to “reasonable excuse” meaningless or nugatory. A person may have narcotic goods in his possession because he has taken them from an addict and is about to destroy them, or because he has found them and is taking them to the police, or because he is an officer of Customs who has confiscated them, and these circumstances may provide him with reasonable excuse. Sub-section (1A) would not appear to bear on the present question. It makes it unnecessary for the prosecution to prove that the accused knew that the goods in his possession had been imported into Australia in contravention of the Act. It does not relieve the prosecution of the burden of proving that the goods were in his possession and that involves proving that he knew of their existence.

A different view has been taken in a number of cases, the first of which was *Reg. v. Bush* (95). In that case the accused, who had

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collected a parcel which contained cannabis, denied that he knew or had reason to suspect that it did contain the cannabis or any other prohibited import. The Court of Criminal Appeal of the Supreme Court of New South Wales held that the prosecution was not required to prove that the accused knew or suspected or had reason to suspect that the parcel contained cannabis. Nagle J., who delivered the judgment of the Court, said (96):

“It was necessary for the Crown to prove that he had de facto possession of the cannabis and this the Crown did by showing that he took exclusive physical control of the parcel which in fact contained cannabis. It was not necessary for the Crown to prove any further mental element beyond the intention to acquire such control of the article in which cannabis was in fact to be found. When the accused claimed that he did not know, or suspect, or have reason to suspect, that it contained cannabis, it was upon him to satisfy the jury that arising from such a claim as to his mental attitude he had in all the circumstances a reasonable excuse for his possession of the narcotic goods.”

This conclusion was reached for two main reasons. First, the Court held that the presumption that mens rea is an essential ingredient in every offence is displaced by the express terms of s. 233B(1)(c) “which makes its own provision in relation to the proof of circumstances which exculpate an accused who has no criminal intention” (97) and that mens rea, in the sense of knowledge of the presence of cannabis or some such prohibited import, was not an essential ingredient of the offence. Nagle J. added (98):

“At the same time we would think that it does not by implication exclude the exculpatory principle by which the person charged may prove an honest belief on reasonable grounds in the existence of circumstances which, if true, would make innocent that with which he is charged. But this exculpation is, we think, encompassed by the terms of par. (c) when it allows for any reasonable excuse, proof of which is to lie on the accused.”

Secondly, it was said (99):

“... possession in s. 233B(1)(c) means no more than de facto possession of the narcotic goods concerned in the sense in which we have considered that expression, and that the mental element involved extends no further than the intention inherent

(96) [1975] 1 N.S.W.L.R., at p. 328;
(1975) 5 A.L.R., at p. 419.

(97) [1975] 1 N.S.W.L.R., at 309;
(1975) 5 A.L.R., at p. 399.

(98) [1975] 1 N.S.W.L.R., at p. 310;
(1975) 5 A.L.R., at p. 400.

(99) [1975] 1 N.S.W.L.R., at p. 324;
(1975) 5 A.L.R., at p. 415.

in de facto possession of such goods, namely, the intention to have exclusive physical control of some article which is in fact narcotic goods or of some article or of some place wherein such goods are in fact carried or contained or located. It is not inherent in that mental element that an accused should know, or suspect, or have reason to suspect, that an item in his de facto possession is narcotic goods. Accordingly, if narcotic goods are found in some bag or garment, or in some package or container, or in some room or place, over which he has the exclusive physical control appropriate to de facto possession, he has them in his possession for the purposes of s. 233B(1)(c). A claim by him that those goods were slipped into his bag or garment or were inserted into the package or container or planted in his room or other place without his knowledge, or suspicion, or reason for suspicion, are matters which he may establish to the tribunal of fact as, according to the circumstances, providing a reasonable excuse for such possession."

The decision in *Reg. v. Bush* has been followed, not only in relation to s. 233B(1)(c) but also in relation to the similar words of s. 233B(1)(ca): see *Reg. v. Rawcliffe* (1); *Reg. v. Kennedy* (2) (where, however, Roden J. dissented); *Reg. v. Gardiner* (3); and *Reg. v. Ditroia and Tucci* (4). It is supported also by the decision of the Full Court of the Supreme Court of Victoria in *Reg. v. Tawill* (5), where the Full Court of the Supreme Court of Victoria held that duress is a reasonable excuse to a charge under s. 233B(1)(c) and that the onus of proving duress is accordingly cast on the accused. The Court said (6):

"The words 'without reasonable excuse' are words of wide import. We see no reason why defences, answers, justifications or excuses recognized by the established principles governing criminal responsibility, such as absence of mens rea, mistake, insanity, infancy or duress, do not fall within the ordinary grammatical meaning of those words."

With all respect I am unable to agree with the reasoning which supports the decision in *Reg. v. Bush*, and the cases which have followed it. The critical question, as I have endeavoured to show, is whether the words of s. 233B(1)(c) make knowledge an element of the crime — a question "entirely different" from whether there is an absence of mens rea when the knowledge is not made an element by the words of the statute themselves: see the passage from *Bank of N.S.W. v. Piper* cited above (7). In answering this question it must be remembered that it has two aspects: first, what the word "possession" ordinarily connotes and secondly, whether there is

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(1) [1977] 1 N.S.W.L.R. 219.

(2) (1979) 37 F.L.R. 365; 25 A.L.R. 367.

(3) [1981] Qd R. 394.

(4) [1981] V.R. 247.

(5) [1974] V.R. 84.

(6) [1974] V.R., at p. 88.

(7) [1897] A.C., at pp. 389-390.

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anything in the statute, or its history, which shows that some other meaning is to be given to the word where it appears in s. 233B(1)(c). For the reasons I have already given "possession" connotes knowledge of the existence of the thing possessed. Further, neither the provisions of par. (c) of s. 233B(1) nor those of sub-s. (1A) contain any indication either that "possession" is to be given any other than its ordinary meaning or that the onus of proving an element which that meaning necessarily embraces should be cast upon the accused.

There are however some decisions of and dicta in this Court on which reliance was placed in *Reg. v. Bush* and other cases which followed it. The most important of these decisions is *Poole v. Wah Min Chan* (8). In that case the defendant was charged that he unlawfully had in his possession certain prohibited imports, to wit 634 diamonds. The charge was laid under s. 233 of the *Customs Act* which, at that time, provided as follows:

"(1) No person shall—

- (a) smuggle any goods; or
- (b) import any prohibited imports; or
- (c) export any prohibited exports; or
- (d) unlawfully convey or have in his possession any smuggled goods or prohibited imports or prohibited exports.

Penalty: One hundred pounds.

(2) It shall not be lawful for any person to convey or have in his possession without reasonable excuse (proof whereof shall lie upon him) any smuggled goods or prohibited imports.

(3) It shall not be lawful for any person to convey or have in his possession any prohibited exports with intent to export them or knowing that they are intended to be unlawfully exported."

The information was dismissed by the magistrate on grounds which are stated in the report as follows (9):

"(i) that submission by counsel for the defendant, citing in support thereof the cases of *Hill v. Donohoe* (10) and *Lyons v. Smart* (11) that it is an element in the offence charged that the defendant should know that the diamonds found in his possession were prohibited imports was upheld by him; and

(ii) that whilst from the untrue account and evasive answers given by the defendant when questioned as to his possession it could be implied that his possession of the said diamonds was unlawful, there was, in the magistrate's opinion, no evidence by which a knowledge could be imputed to the defendant as to the specific character of the said goods, that is to say, that they were prohibited imports."

(8) (1947) 75 C.L.R. 218.

(9) (1947) 75 C.L.R., at p. 220.

(10) (1911) 13 C.L.R. 224.

(11) (1908) 6 C.L.R. 143.

An appeal by the informant was allowed. Latham C.J. (with whom McTiernan and Williams JJ. concurred) said (12):

“Sub-section (2) provides that the possession by a person of goods shall be unlawful if (1) they are prohibited imports, and (2) he is in such possession without reasonable excuse, proof of such excuse to lie upon him. If these conditions are satisfied the possession is declared by the statute to be unlawful and it is unnecessary to consider whether or not the person charged knew that the goods were prohibited imports. A defendant may be able to show that he had no reason to believe that the goods were prohibited imports. Generally, such proof would provide a reasonable excuse. The opinion that possession without reasonable excuse of prohibited imports in itself and independently of any further mental element consisting in knowledge that the goods are prohibited imports is an offence is supported by a consideration of sub-s. (3). . . . In this case the legislature has defined a mental element the presence of which is necessary in order to make possession unlawful under the provisions of sub-s. (3). There is no corresponding provision in sub-s. (2) relating to any mental element in the offence except in so far as a mental element is introduced by the words ‘without reasonable excuse’ — words which would entitle the defendant to explain his possession of the goods by reference to his knowledge or intent. The onus of proving the existence of a reasonable excuse is expressly imposed upon the defendant.”

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Starke J. said (13):

“The intention of the Act to create as wide a presumption as possible of knowledge is disclosed by the sub-section declaring that it shall not be lawful for any person to have in his possession without reasonable excuse (the proof whereof shall lie upon him) any prohibited imports. . . .

In my opinion, therefore, the provisions of s. 233 are absolute unless the person in possession of prohibited goods can establish that he was in possession thereof under some lawful authority or was in possession thereof having some reasonable excuse for that possession, the proof whereof lies upon him. A reasonable excuse depends upon the facts established in evidence. The sub-section contemplates that the person in possession of the prohibited imports may not establish any legal justification for his possession and yet have a reasonable excuse.”

It was common ground in that case that the accused had possession of the diamonds, and he knew that he had them because he gave an untrue account of how they came into his possession. The question whether the defendant’s knowledge of the existence of the diamonds was essential to his possession of them was not discussed. The

(12) (1947) 75 C.L.R., at pp. 227-228.

(13) (1947) 75 C.L.R., at p. 232.

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question was whether it was an element of the offence that he knew that they were prohibited imports — a question as to knowledge of the qualities or attributes rather than the existence of the goods. The judgments do not deal with the question whether a person could have in his possession goods of whose existence he was unaware.

Hill v. Donohoe (14), which was distinguished in *Poole v. Wah Min Chan* (15), was a decision upon s. 233B(1)(c) of the *Customs Act* which, at that time, provided that any person who “without reasonable excuse (proof whereof shall lie upon him) has in his possession any prohibited imports to which this section applies which have been imported into Australia in contravention of this Act” shall be guilty of an offence against the Act. It was held that it was an element of the offence that the defendant should know that the prohibited imports found in his possession had been imported into Australia in contravention of the Act. The subsequent amendment of the section by the insertion of sub-s. (1A) reversed the effect of that decision.

The legislative history of the *Customs Act* up to 1976 is traced by Mason J. in his judgment in *Beckwith v. The Queen* (16). Subsequent amendments do not affect the position. The amendments made to the sections, and the decisions upon them, do not assist the contention of the Crown that knowledge of the existence of the narcotics is not an element of the offence.

In *Reg. v. Bull* (17), one question for decision was whether offences against s. 233B(1)(a) and (c) can be committed at sea within three miles of the coast. Section 233B(1)(a) refers to a person who, “without any reasonable excuse (proof whereof shall lie upon him) has in his possession, on board any ship or aircraft, any prohibited imports to which this section applies”. The Court, by a majority, held that offences against those provisions can be committed at sea within three miles of the coast. Barwick C.J. dissented. In the course of his discussion of this question Barwick C.J. said (18):

“Applying the section to the foreign trade by sea, the possession of the cargo is in the master of the vessel, the right to possession, absolute or conditional as the case may be, being either in consignor or consignee as the circumstances require. Knowledge of the nature of the thing possessed is not essential to the commission of the offence under s. 233B(1)(a); however much ignorance of it may exculpate: see *Maher v. Musson* (19). It would, in my opinion, be absurd to construe the section as making it an offence in the master to be in possession in the

(14) (1911) 13 C.L.R. 224.

(15) (1947) 75 C.L.R. 218.

(16) (1976) 135 C.L.R. 569, at pp. 578-580.

(17) (1974) 131 C.L.R. 203.

(18) (1974) 131 C.L.R., at pp. 220-221.

(19) (1934) 52 C.L.R. 100.

marginal seas of any goods the importation of which is prohibited.”

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The learned Chief Justice did not explain why he considered that knowledge of the nature of the thing possessed was not essential to the commission of an offence under s. 233B(1)(a). He did not say that knowledge of the existence of the thing possessed was not essential. In any case, with the greatest respect, this remark in a dissenting judgment is no authority contrary to the view that I have formed.

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Finally, reference was made to some remarks of my own in *Milicevic v. Campbell* (20). In that case the Court upheld the validity of s. 233B(1)(ca). In the course of my judgment I said (21):

“Some remarks in *Hill v. Donohoe* raise the question whether the statement that the parliament has power to make it unlawful to have possession of goods that have been unlawfully imported requires some qualification to render it correct. In that case it was held that knowledge is an element of the offence created by s. 233B(1)(c) — a situation since altered by the addition of sub-s. (1A) to s. 233B — but the court left open the question whether parliament could validly legislate to make it an offence for a person to have in his possession prohibited goods which in fact had been imported, if he was ignorant of that fact.”

My remarks unfortunately were elliptical and somewhat ambiguous. I did not intend to suggest that sub-s. (1A) rendered it unnecessary to prove knowledge of the existence of the goods but simply that the sub-section rendered it unnecessary to prove knowledge that the goods had been imported into Australia in contravention of the Act. The words of the sub-section show that it has no wider effect.

For the reasons I have given I hold that in a proceeding under par. (b) or par. (c) of s. 233B(1) the prosecution bears the onus of proving that the accused knew of the existence of the goods which he brought into Australia, or which were in a suitcase or other container over which he had exclusive physical control, as the case may be. The proper direction on the first charge was that the prosecution had to prove that the applicant brought the suitcase into Australia, knowing that the heroin was in the case. On the second charge the jury should have been told that they could not find that the applicant had the heroin in his possession, unless they were satisfied that he knew that it was in the suitcase. Whether a direction concerning wilful blindness was also necessary depends on the facts, which were not fully before us. It is rather regrettable that a statutory provision which has assumed so great an importance in

(20) (1975) 132 C.L.R. 307.

(21) (1975) 132 C.L.R., at p. 313.

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law enforcement in Australia should present such difficulties of interpretation. However I have no fear that the effect which I have given to the section will prove to be a charter for drug traffickers. If that is wrong, the remedy lies with the Parliament.

At first sight it would appear that the misdirection must lead to an order setting aside the conviction and for a new trial. However, the transcript of evidence was not placed before us. The learned trial judge told the jury that they might think that the central issue in the trial was the knowledge of the applicant and there can be no doubt that they found adversely to the applicant on that issue. We are unable to say whether the evidence raised a case so strong that notwithstanding the misdirection no substantial miscarriage of justice occurred. In these circumstances I would grant special leave to appeal, allow the appeal, and refer the matter back to the Full Court of the Supreme Court of Victoria to proceed in accordance with this judgment.

MASON J. I agree with the reasons for judgment and the orders proposed by the Chief Justice.

WILSON J. The applicant was convicted, after trial by judge and jury in the County Court of Victoria, of two offences under the *Customs Act* 1901, as amended ("the Act"). The first offence was that on 20 October 1982 at Melbourne he imported into Australia prohibited imports, namely heroin, contrary to s. 233B(1)(b) of the Act. The second was that on the same day at Melbourne without reasonable excuse he had in his possession prohibited imports, namely heroin, contrary to s. 233B(1)(c) of the Act. The same goods were involved in each offence. The applicant was sentenced to imprisonment for twenty years with a minimum term of seventeen years on the first count and ten years with a minimum term of eight years on the second count, both sentences to be served concurrently. The amount of heroin the subject of these offences was 2.788 kilograms and according to the evidence its street value in Australia was of the order of 5.5 million dollars. It goes without saying that the offences were extremely serious.

The applicant appealed against both convictions and sentences to the Full Court of the Supreme Court of Victoria sitting as the Court of Criminal Appeal. His complaint with respect to the convictions was that the learned trial judge had misdirected the jury on the burden of proof of guilty knowledge on the part of the applicant that the goods in question were prohibited imports. It is convenient to set out that portion of the charge to the jury that dealt with these matters. His Honour said, speaking of the charge of importation:

"So the elements or ingredients of that offence which the Crown must prove beyond reasonable doubt before you can find the accused man guilty are: first, an importation; second, done by the accused; third, of heroin; fourth, on 20 October 1982 at Melbourne.

You will note that the Crown does not have to prove any state of mind or knowledge of the accused. The offence is complete when those four elements are proved beyond reasonable doubt. No specific state of mind, whether of motive, intention, knowledge or advertence, need be proved by the Crown. If the accused man establishes by way of defence that he had an honest and reasonable belief in a state of facts which if they existed would make his act innocent, that would afford a defence to this charge. You will note, however, that the onus of establishing such a defence is upon him. The requisite standard to which he must establish such a defence is on the balance of probabilities not beyond reasonable doubt. The balance of probabilities means that the onus of proof upon him is to prove that it is more probable than not that he had such an honest and reasonable belief."

A little later, speaking of the charge of possession, his Honour said:

"Again no specific state of mind, whether of motive, intention, knowledge or advertence, need be proved by the Crown. . . . You will have noted that in respect of this second charge, the words 'without reasonable excuse' are used. The Crown does not have to prove the accused man did not have reasonable excuse. Proof that he had reasonable excuse rests upon the accused . . ."

On the hearing of the appeals in the Court of Criminal Appeal it was conceded that the directions which were given to the jury in relation to both counts were in accordance with authorities which bound that Court, namely, *Reg. v. Parsons* (22) and *Reg. v. Ditroia and Tucci* (23). The appeals were therefore dismissed, opening the way for the applicant to seek special leave from this Court in order that the correctness of the passages that I have extracted from the trial judge's charge to the jury may be considered. The appeals against sentence were also dismissed by the Court of Criminal Appeal and the application for special leave includes that aspect of the matter. However, in the course of the hearing of the application the Court intimated to counsel that in accordance with its established practice it would not grant special leave to appeal against sentence merely on the ground of its alleged severity. Therefore no more need be said of that part of the application.

So far as material, s. 233B of the Act reads as follows:

"(1) Any person who—

(a) without any reasonable excuse (proof whereof shall lie

(22) [1983] 2 V.R. 499.

(23) [1981] V.R. 247.

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upon him) has in his possession, on board any ship or aircraft, any prohibited imports to which this section applies; or

- (b) imports, or attempts to import, into Australia any prohibited imports to which this section applies or exports, or attempts to export, from Australia any prohibited exports to which this section applies; or
- (c) without reasonable excuse (proof whereof shall lie upon him) has in his possession, or attempts to obtain possession of, any prohibited imports to which this section applies which have been imported into Australia in contravention of the Act; or
- (ca) without reasonable excuse (proof whereof shall lie upon him) has in his possession, or attempts to obtain possession of, any prohibited imports to which this section applies which are reasonably suspected of having been imported into Australia in contravention of this Act; or
- (cb) conspires with another person or other persons to import into Australia any prohibited imports to which this section applies or to export from Australia any prohibited exports to which this section applies; or
- (d) aids, abets, counsels, or procures, or is in any way knowingly concerned in, the importation into Australia of any prohibited imports to which this section applies, or the exportation from Australia of any prohibited exports to which this section applies; or

...

shall be guilty of an offence.

(1A) On the prosecution of a person for an offence against the last preceding sub-section, being an offence to which paragraph (c) of that sub-section applies, it is not necessary for the prosecution to prove that the person knew that the goods in his possession or of which he attempted to obtain possession had been imported into Australia in contravention of this Act, but it is a defence if the person proves that he did not know that the goods in his possession or of which he attempted to obtain possession had been imported into Australia in contravention of this Act.

(1B) On the prosecution of a person for an offence against sub-section (1), being an offence to which paragraph (ca) of that sub-section applies, it is a defence if the person proves that the goods were not imported into Australia or were not imported into Australia in contravention of this Act.

(1C) Any defence for which provision is made under either of the last 2 preceding sub-sections in relation to an offence does not limit any defence otherwise available to the person charged.

(2) The prohibited imports to which this section applies are prohibited imports that are narcotic goods and the prohibited exports to which this section applies are prohibited exports that are narcotic goods.

(3) A person who is guilty of an offence against sub-

section (1) of this section is punishable upon conviction as provided by section 235.

...

By force of s. 235(2)(c)(i), the penalty applicable to each of the offences of which the applicant was convicted was imprisonment for life or for such period as the Court thinks appropriate.

The first submission advanced for the applicant is that guilty knowledge is an element of the offence created by s. 233B(1)(b). In its application to this case the proposition is that in order to establish a *prima facie* case against the applicant the Crown was obliged to adduce evidence capable of establishing beyond reasonable doubt that he knew that he was importing prohibited goods, namely, heroin. The furthest that counsel was prepared to go in developing this submission was that the Crown may be permitted to rely upon an evidential presumption in favour of knowledge on the part of the applicant, with the result that unless he adduced evidence of his lack of knowledge of the presence of the prohibited substance in his luggage the jury would be entitled to convict. However, the consequence of his assuming an evidential burden in this way is not to transfer from the Crown the legal burden of persuasion beyond reasonable doubt of all the elements of the charge, including guilty knowledge.

Ultimately, the answer to this contention must rest on the construction of the Act. However, the difficulty of the task is evidenced by the bewildering diversity of judicial opinion expressed generally on the subject of guilty knowledge over the past century. The starting point of any evaluation must be the much-quoted statement of Wright J. in *Sherras v. De Rutzen* (24):

“There is a presumption that *mens rea*, an evil intention, or a knowledge of the wrongfulness of the act, is an essential ingredient in every offence; but that presumption is liable to be displaced either by the words of the statute creating the offence or by the subject-matter with which it deals, and both must be considered.”

The court was there concerned with a prohibition imposed on licensed victuallers not to supply liquor to a police constable while on duty. In terms, the act of supply was made an offence without any qualification. Another member of the court, Day J., commented on the absence of the word “knowingly” in the provision creating the offence although the word did appear elsewhere in the statute and drew the inference that the presence of the word “knowingly” had the effect of requiring the prosecution to prove the knowledge while its absence had the effect of requiring the defendant to prove

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(24) [1895] 1 Q.B. 918, at p. 921.

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that he did not know. Similarly, in *Harding v. Price* (25), Lord Goddard C.J. observed that the omission of the word “knowingly” from a provision creating an offence may serve only to alter the burden of proof: see also *Reynolds v. G.H. Austin & Sons Ltd.* (26); *R. v. Ewart* (27). These cases are discussed in the very helpful judgment of the Court of Appeal of New Zealand in *Reg. v. Strawbridge* (28).

This Court has had the opportunity of considering the problem on a number of occasions. In *Maher v. Musson* (29) the question was whether knowledge of the wrongfulness of the act is an essential ingredient of the offence of having custody of illicit spirits contrary to s. 74(4) of the *Distillation Act* 1901-1931 (Cth). The prohibition was expressed in absolute terms but a majority of the Court held that the defendant is entitled to be discharged if he proves that he neither believed nor had reason to believe that the spirits in question were illicit. Dixon J. said (30):

“But the terms in which clause 4 of sec. 74 is expressed do not make knowledge of the illicit character of the spirits an essential element of the offence. To imply such a requirement would no doubt be possible, but in the case of a revenue statute of the tenor of that now in question, no presumption appears to arise in favour of that implication. Nevertheless, in the case alike of an offence at common law and, unless expressly or impliedly excluded by the enactment, of a statutory offence, it is a good defence that the accused held an honest and reasonable belief in the existence of circumstances, which, if true, would make innocent the act for which he is charged (per Cave J., *Reg. v. Tolson* (31)).”

His Honour proceeded to give reasons for his conclusion that the defence was not excluded in the case before him, one of those reasons being that the nefarious character of the article was not intrinsic to the article itself, but arose from its unlawful history.

In *Thomas v. The King* (32) a majority of the Court held that the common law defence of honest and reasonable mistake of fact was available to a person charged with the crime of bigamy. Latham C.J. (33) discerned a “strong current of authority” from *Tolson’s Case* establishing the proposition that the general rule in all the graver class of crimes is that the accused is not guilty if he had an honest and reasonable belief in the existence of facts which, if they had really existed, would have made innocent the act for which

(25) [1948] 1 K.B. 695, at p. 700.

(26) [1951] 2 K.B. 135.

(27) (1906) 25 N.Z.L.R. 709.

(28) [1970] N.Z.L.R. 909.

(29) (1934) 52 C.L.R. 100.

(30) (1934) 52 C.L.R., at p. 104.

(31) (1889) 23 Q.B.D. 168, at p. 181.

(32) (1937) 59 C.L.R. 279.

(33) (1937) 59 C.L.R., at p. 287.

he is charged. The existence of such a belief is equated with the absence of mens rea: see per Dixon J. (34), citing Sir Richard Couch in *Bank of N.S.W. v. Piper* (35). It may be observed that there is no discussion in *Thomas* of any burden resting on the Crown to rebut a defence of mistake. It is taken for granted that it is for the accused person to satisfy the jury that he was honestly and reasonably mistaken. The then recent decision of the House of Lords in *Woolmington v. Director of Public Prosecutions* (36) was not referred to.

In *Proudman v. Dayman* (37) the three members who constituted the Court found it unnecessary to decide whether an honest belief on reasonable grounds that the driver was licensed was a defence to a charge of permitting an unlicensed person to drive a motor vehicle on a road. However, Dixon J. discussed the matter, saying (38):

"There may be no longer any presumption that mens rea, in the sense of a specific state of mind, whether of motive, intention, knowledge or advertence, is an ingredient in an offence created by a modern statute; but to concede that the weakening of the older understanding of the rule of interpretation has left us with no prima facie presumption that some mental element is implied in the definition of any new statutory offence does not mean that the rule that honest and reasonable mistake is prima facie admissible as an exculpation has lost its application also.

The burden of establishing honest and reasonable mistake is in the first place upon the defendant and he must make it appear that he had reasonable grounds for believing in the existence of a state of facts, which, if true, would take his act outside the operation of the enactment and that on those grounds he did so believe. The burden possibly may not finally rest upon him of satisfying the tribunal in case of doubt."

It appears from this last passage that his Honour at least contemplated the possibility that while the responsibility for leading evidence to set up the defence of mistake rested with a defendant the legal burden of disproving that defence beyond a reasonable doubt lay with the prosecution. There was no such suggestion evident in his Honour's judgment in *Maher v. Musson* (39). *Woolmington* having been decided in the period intervening between the two cases, it may have been responsible for introducing a doubt in his Honour's mind. In *Sweet v. Parsley* (40) Lord Pearce and Lord

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(34) (1937) 59 C.L.R., at pp. 304-305.

(35) [1897] A.C. 383, at pp. 389, 390.

(36) [1935] A.C. 462.

(37) (1941) 67 C.L.R. 536.

(38) (1941) 67 C.L.R., at pp. 540-541.

(39) (1934) 52 C.L.R. 100.

(40) [1970] A.C. 132, at pp. 158, 164.

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Diplock expressed contrary understandings of the effect of what Dixon J. was saying in the passage I have cited so far as the ultimate onus of proof is concerned.

In *Hill v. Donohoe* (41) it was held that knowledge on the part of the defendant that the prohibited imports found in his possession had been imported in contravention of the Act was an element of an offence under s. 233B(1)(c), but this situation has since been altered by the insertion in 1967 of sub-s. (1A) in s. 233B.

In *Poole v. Wah Min Chan* (42) the respondent was charged under s. 233(1)(d) of the Act with unlawfully having prohibited imports, to wit, 634 diamonds, in his possession. It was held that knowledge that the diamonds were prohibited imports was not an element of the offence, although if a defendant is able to show that he had no reason to believe that the goods were prohibited imports such proof would provide a reasonable excuse: see per Latham C.J. (43).

In *Samuels v. Stokes* (44), the question was whether the respondent was liable to be convicted of the offence of loitering under s. 18 of the *Police Offences Act* 1953-1972 (S.A.) notwithstanding that a defence may have been available under s. 6 of the *Public Assemblies Act* 1972 (S.A.). The Court held that it was not for the prosecution as part of its case to negative the application of the latter provision. However, two members of the Court, Menzies and Gibbs JJ., each expressed the view that had the defence been raised the burden of disproving it beyond a reasonable doubt would have fallen upon the prosecution: see per Menzies J. (45), citing *Mancini v. Director of Public Prosecutions* (46); per Gibbs J. (47).

The last of the decisions of this Court to which I wish to refer is the case of *Cameron v. Holt* (48), where the Court held that mens rea is an ingredient of the offence created by s. 138(1)(d) of the *Social Services Act* 1947 (Cth). Barwick C.J., with whom Aickin J. agreed, said (49):

“Further, there is a presumption — in my opinion, a strong presumption — that in creating a criminal offence the legislature intends a guilty intent appropriate to the nature of the offence to be an ingredient of the offence. This presumption can only be displaced if the language of the statute read along with its subject-matter requires the conclusion that the legis-

(41) (1911) 13 C.L.R. 224.

(42) (1947) 75 C.L.R. 218.

(43) (1947) 75 C.L.R., at p. 227.

(44) (1973) 130 C.L.R. 490.

(45) (1973) 130 C.L.R., at p. 501.

(46) [1942] A.C. 1, at pp. 7-8, 11-13.

(47) (1973) 130 C.L.R., at pp. 504-505.

(48) (1980) 142 C.L.R. 342.

(49) (1980) 142 C.L.R., at pp. 346-347.

lature intended that such guilty intent should not form part of the prescription of the offence: *Lim Chin Aik v. The Queen* (50), affirming the expression of Wright J. in *Sherras v. De Rutzen* (51); see also *Sweet v. Parsley* (52) per Lord Diplock.

... it is unnecessary to discuss those cases in which shifting of the burden of proof has been spoken of. It suffices to say that for my own part I agree with Lord Diplock that, after *Woolmington v. Director of Public Prosecutions* (53) it always remains for the Crown to establish guilt however much during the course of a trial what has been referred to at times as an evidentiary burden of proof has shifted to the accused, that is to say, in cases where the Crown's evidence raises a sufficient prima facie case to lead to the expectation, particularly where the facts are in the possession of the accused, that the accused would provide evidence to negate or weaken the case which theretofore has been made by the Crown. But, in the long run, the Crown must establish guilt."

Cf., also, per Mason J. (54).

These views reflect growing support for the possibility voiced by Dixon J. in *Proudman v. Dayman* (55) that in appropriate cases the ultimate burden of persuasion remains on the prosecution. The development of the law for New Zealand in this direction is most persuasively demonstrated in the decision in *Strawbridge* (56) to which I have already referred. In that case the Court was required to consider the question of mens rea in relation to the offence created by s. 5(1)(c) of the *Narcotics Act* 1965 (N.Z.) of cultivating prohibited plants, namely, cannabis plants. After a detailed examination of cases decided in England and New Zealand from *Sherras v. De Rutzen* in 1895 to *Sweet v. Parsley* in 1970, the Court held that unless s. 5(1)(c) was to be read as creating an absolute offence it was open to an accused person to point to evidence which tended to show an absence of knowledge that the plant which was being cultivated was a prohibited plant. On the question of determining whether ignorance or mistake was relevant to guilt, the Court said (57):

"... this is not merely a question of the interpretation of the statute. The Court as well should have regard to the whole circumstances of the case, the nature of the charge and the severity of the penalty imposed on a wrongdoer. In our opinion it is unthinkable that Parliament ever intended to expose citizens to a liability of up to fourteen years' imprisonment where the accused person did not know that the plant he or she was cultivating was a prohibited plant."

(50) [1963] A.C. 160, at p. 173.

(51) [1895] 1 Q.B. 918, at p. 921.

(52) [1970] A.C., at p. 162.

(53) [1935] A.C. 462.

(54) (1980) 142 C.L.R., at p. 348.

(55) (1941) 67 C.L.R. 536.

(56) [1970] N.Z.L.R. 909.

(57) [1970] N.Z.L.R., at p. 916.

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Having concluded that the legislature did not intend to create an offence of absolute liability, the Court continued (58):

“In order to present a prima facie case, it is not necessary for the Crown to establish knowledge on the part of the accused. In the absence of evidence to the contrary knowledge on her part will be presumed, but if there is some evidence that the accused honestly believed on reasonable grounds that her act was innocent, then she is entitled to be acquitted unless the jury is satisfied beyond reasonable doubt that this was not so.”

In *Kidd v. Reeves* (59), Menhennitt J. pursued a course of reasoning similar to that followed in *Strawbridge*. In *Mayer v. Marchant* (60) each member of the Full Court of the Supreme Court of South Australia (Bray C.J., Hogarth and Zelling JJ.), in considering the requirements of proof of a summary offence under the *Road Traffic Act* 1961 (S.A.), examined at some length the course of decision in recent cases, an examination which demonstrated what Zelling J. described as showing “how much the pendulum is swinging back to the reaffirmation of mens rea in summary offences” (61). In the result, the Chief Justice and Zelling J. each concluded that in cases where the defences of mistake or the act of a stranger are available the onus lies on the Crown to negative the defences once the evidential burden has been discharged by the defendant. Hogarth J., while acknowledging the trend of authority, thought it proper to follow *Maher v. Musson* (62) until the matter is reconsidered in this Court (63).

It is against this background of judicial opinion that I come to consider the case histories that are immediately relevant to the applicant's first submission. As I have already explained, the trial judge directed the jury that it was for the applicant to satisfy the jury on the balance of probabilities that he honestly and reasonably believed in the existence of a state of facts which if they had really existed would make his act innocent. That direction was upheld by the Court of Criminal Appeal on the authority of *Reg. v. Parsons* (64), an earlier decision of the Court which was binding upon it. Like the present case, *Parsons* was a case of alleged importation of heroin contrary to s. 233B(1)(b) of the Act. The Court was required to consider whether that paragraph cast the onus on the prosecution of either establishing mens rea on the part of the defendant or excluding the operation of the defence of ignorance or mistake of fact. Notwithstanding some misgivings the Court, by

(58) [1970] N.Z.L.R., at p. 916.

(59) [1972] V.R. 563.

(60) [1973] 5 S.A.S.R. 567.

(61) [1973] 5 S.A.S.R., at p. 587.

(62) (1934) 52 C.L.R. 100.

(63) [1973] 5 S.A.S.R., at p. 579.

(64) [1983] 2 V.R. 499.

majority (Young C.J. and King J., Starke J. dissenting), answered both parts of the question in the negative. Its reason for doing so was that the very same question had already been answered in that way by the Court of Criminal Appeal in Queensland in the case of *Reg. v. Gardiner* (65). Their Honours who formed the majority understandably considered that it would be highly undesirable for one State Full Court to place a different interpretation upon a Commonwealth statute from that placed upon it by the Full Court of another State. They therefore followed *Gardiner*. Starke J., while acknowledging the desirability of uniformity in the decisions of State Supreme Courts exercising federal jurisdiction, expressed his dissent in strong terms. His Honour said (66):

“In the rare case — and I think this is one — where the Court is convinced that the decision of another Full Court is erroneous and where the principle involved is fundamental to the administration of criminal justice, and where to follow the other decision is calculated to cause serious injustice, this Court is entitled and indeed in such a case in my opinion bound to decide the matter for itself. . . . The principle that mens rea is an ingredient of all serious criminal offences unless the legislature otherwise provides is a fundamental principle of the criminal law. Where the penalty is imprisonment for life it is patent that serious injustice may result from an erroneous decision in respect of mens rea.”

The decision of the Court in *Gardiner* (67) was by majority (Stable S.P.J. and Hoare J., Demack J. dissenting), the judgment of the majority being delivered by Hoare J. His Honour expresses his conclusion on s. 233B(1)(b) very shortly as follows (68):

“... having regard to the subject-matter of the legislation, namely narcotic goods, and the virtual impossibility of proving the state of mind of an importer of narcotic goods in the absence of admissions which would be unlikely to be made by traffickers, while there is much to be said to the contrary, it seems to me that the legislature intended to create the offence by proof of the actual importing”.

Hoare J. then referred to *Sherras v. De Rutzen* (69) and to *Irving v. Nishimura* (70). He noted that pars. (a), (c) and (ca) of s. 233B(1) expressly refer to onus of proof while there is no such reference in pars. (b) and (d) but rejected any inference therefrom that the legislature intended any onus of proof other than of the expressed elements of the offence to lie upon the prosecution. In his Honour's

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(65) [1981] Qd R. 394; (1979) 27 A.L.R. 140.

(66) [1983] 2 V.R., at p. 508.

(67) [1981] Qd R. 394; (1979) 27 A.L.R. 140.

(68) [1981] Qd R., at p. 405; (1979) 27 A.L.R., at p. 151.

(69) [1895] 1 Q.B. 918.

(70) (1907) 5 C.L.R. 233.

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view, the nature of the prohibited imports being narcotic goods, it was "perfectly appropriate that there be an absolute prohibition on all dealings with such goods" (71). It therefore appears that the view of the majority was that the offence of importing narcotic goods contrary to s. 233B(1)(b) was one of absolute liability, excluding any element of mens rea whether as an element of the offence to be proved by the Crown or introduced and proved as a defence by an accused person. So understood, the trial judge's direction to the jury in the present case was too favourable to the applicant. Demack J.'s dissent was founded on his construction of the section, having regard particularly to the fact that in pars. (a), (c) and (ca) the legislature had expressly placed an onus of proof on the accused person. There being no exclusion, either expressly or by necessary implication, of mens rea in relation to an offence under par. (b), it followed in his Honour's view "that the prosecution must prove that the accused was not reasonably mistaken, as to the nature of the substance he was carrying" (72).

Having, through the medium of a review of many of the relevant cases, exposed the competing considerations that fall to be considered, it is now possible to proceed to draw some conclusions. The central task is to construe s. 233B(1)(b) of the Act. That task is assisted by a consideration of the history of the section, a history which has seen the maximum punishment for an offence under the paragraph move steadily upwards from imprisonment for two years in 1910 to life imprisonment in 1979, and the passage of amendments from time to time which transfer from the prosecution to the defence the burden of proving certain issues relevant to offences under pars. (c) and (ca) (cf. sub-ss. (1A) and (1B)). Paragraph (b) does not expressly import mens rea as an element of the offence; the word "knowingly" does not appear. Nevertheless, does the presumption referred to by Wright J. in *Sherras v. De Rutzen* (73) operate? Here the seriousness of the punishment to which an offender is liable is of great materiality. Is it conceivable that the legislature would have created an offence of absolute liability carrying life imprisonment, that is to say, an offence which would be established by proof merely of the importation by the accused of narcotic goods regardless of honest and reasonable mistake or duress or ignorance or the gratuitous act of a stranger or any other reasonable excuse? In considering that question, due regard must be paid to the obvious legislative concern, reflected in the penalty, for the protection of the

(71) [1981] Qd R., at p. 405; (1979)
27 A.L.R., at p. 152.

(72) [1981] Qd R., at p. 415; (1979)
27 A.L.R., at p. 160.

(73) [1895] 1 Q.B., at p. 921.

community from the monstrous evils of the international traffic in heroin and other drugs which are intrinsically nefarious. One cannot lightly dismiss the view of the majority of *Gardiner* (74) that an offence of absolute liability may be justified by the difficulties that any other conclusion would place in the way of law enforcement officers, particularly if guilty knowledge was required to be established in making out a prima facie case. In some of the cases a conclusion in favour of a presumption of mens rea as an element of an offence under par. (b) has found support in a comparison with the wording of other paragraphs in sub-s. (1). Paragraphs (a), (c) and (ca) expressly import "without reasonable excuse" in the description of the offence created by each of those paragraphs and in each case the onus of proof of any reasonable excuse is expressly placed upon an accused person. However, I find such phrases inconclusive. It may readily be said that the legislature, having expressly placed an onus on an accused person in these paragraphs, supplies a clear inference that in par. (b), where the words do not appear, the legislature intended the onus of proof to remain on the prosecution. But that inference flows only from the presence of the words in parentheses, these being the only words dealing with the question of proof. A competing inference may flow from the express inclusion of the words "without reasonable excuse". These are words which clearly import mens rea into the offences created by the paragraphs in which they appear. The omission of the words from par. (b) could be taken to mean that the legislature intended that in the case of importation no excuse whatever, whether reasonable or otherwise, was to be tolerated. In that case the offence would be one of absolute liability. On the other hand, the presence of sub-s. (1c) in the section recognizes the possible application of defences otherwise available to the person charged. The section does not form a code complete in itself.

In my opinion, the omission of the words "without reasonable excuse" from par. (b) has the effect of removing mens rea as an element of the offence which is to be positively established by the prosecution in making out a prima facie case. But this is not to constitute the offence as one of absolute liability. It is to give with one qualification the same effect to the omission as Day J., in *Sherras v. De Rutzen*, gave to the omission of the word "knowingly" from the description of one offence in the Act there under consideration whilst the word appeared in another offence in the same section. His Lordship said (75):

(74) [1981] Qd R. 394; (1979) 27 A.L.R. 140.

(75) [1895] 1 Q.B., at p. 921.

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“... the only effect of this is to shift the burden of proof. In cases under sub-s. 1 it is for the prosecution to prove the knowledge, while in cases under sub-s. 2 the defendant has to prove that he did not know. That is the only inference I draw from the insertion of the word ‘knowingly’ in the one subsection and its omission in the other.”

The qualification is that the word “prove” in this passage should not in this context be understood to mean any more than to “adduce evidence of”. In other words, the effect of the omission of the words “without reasonable excuse” from par. (b) is to transfer the evidential burden, the burden of adducing evidence, from the prosecution to the defence. It then remains on the prosecution to rebut that evidence to the satisfaction of the jury beyond a reasonable doubt.

This construction seems to me to most satisfactorily meet the competing considerations to which I have referred. The prosecution is relieved of the necessity of looking into the mind of the alleged offender in an attempt to exclude as part of its case possible states of mind that might point to innocence. Proof of the importation of the drug by the accused person will be *prima facie* sufficient to establish the charge. But an accused person who lacks any guilty intent will have the opportunity of explaining the incriminating conduct and at the end of the day if the jury is left with a reasonable doubt then an acquittal will follow. It ought not to be assumed that the inference of guilty knowledge arising from the importation of a prohibited drug will be lightly erased. On the other hand, if the consequences of this construction prove inimical to the welfare of the Australian community then it will be for a legislature to make its intention clearer. I should add that in the light of the decision in *Woolmington* (76) and of later authorities I do not think it is possible or desirable to hold that the decision of this Court in *Maher v. Musson* (77) is determinative of this case. In any event, the seriousness of the offence in *Maher v. Musson* bears no comparison with an offence under s. 233B(1)(b). It is unnecessary to consider whether the force of that decision remains unimpaired in the case of some minor statutory offences of a strict liability kind which carry a modest penalty. First and foremost it is a question of construction of the particular statute in every case.

In my opinion, then, it should now be taken to be the law in Australia that in order to present a *prima facie* case of an offence under s. 233B(1)(b) of the Act it is not necessary for the Crown to establish guilty knowledge on the part of the accused. In the absence of evidence to the contrary such knowledge will be presumed, but if there is some evidence that an accused person honestly believed on

(76) [1935] A.C. 462.

(77) (1934) 52 C.L.R. 100.

reasonable grounds that his act was innocent then he is entitled to be acquitted unless the jury is satisfied beyond reasonable doubt that this was not so. I have taken the substance of this formulation from the decision of the New Zealand Court of Appeal in *Strawbridge* (78). The conclusion is also in line with the opinion of a number of judges within Australia who have had occasion to consider the general problem since *Strawbridge*: Bray C.J. and Zelling J. in *Mayer v. Marchant* (79); Menhennitt J. in *Kidd v. Reeves* (80); Demack J. in *Gardiner* (81); Starke J. in *Parsons* (82) (with Young C.J. and King J. declining to endorse the correctness of the opposing view); and finally by members of this Court: Menzies and Gibbs JJ. in *Samuels v. Stokes* (83); Barwick C.J., Mason and Aickin JJ. in *Cameron v. Holt* (84). It may be desirable to add that I am unable as at present advised to draw a distinction between a defence of honest and reasonable mistake and one of honest and reasonable ignorance of the presence or nature of the goods in question. The conclusion also has the merit of bringing the common law in Australia on the question of honest and reasonable mistake into line with the law in the Code States of Queensland, Western Australia and Tasmania: cf. *Brimblecombe v. Duncan*; *Ex parte Duncan* (85); *Geraldton Fishermen's Co-Operative Ltd. v. Munro* (86). This is an important consideration where the exercise of federal jurisdiction is concerned.

It is next submitted on behalf of the applicant that the trial judge's direction to the jury on the charge of possession under s. 233B(1)(c) was erroneous in that his Honour told the jury that the Crown did not have to prove that the applicant was *knowingly* in possession of the heroin. The submission joins issue with the correctness of the unanimous decision of the Court of Criminal Appeal in Victoria in *Reg. v. Ditroia and Tucci* (87). In that case the Court held that in a prosecution under s. 233B(1)(ca) of the Act if a defendant is found in possession of narcotic goods the Crown is not required to prove knowledge by the defendant of the nature of the narcotic goods: it is for the defendant to establish lack of knowledge of the nature of the goods so that a jury might decide whether such lack of knowledge, if so proved, amounted to a reasonable excuse for possession. In coming to that conclusion, the Court followed the decision of the Court of Criminal Appeal in New South Wales in *Reg. v. Bush* (88).

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(78) [1970] N.Z.L.R., at p. 916.

(79) (1973) 5 S.A.S.R. 567.

(80) [1972] V.R. 563.

(81) [1981] Qd R. 394; (1979) 27 A.L.R. 140.

(82) [1983] 2 V.R. 499.

(83) (1973) 130 C.L.R. 490.

(84) (1980) 142 C.L.R. 342.

(85) [1958] Qd R. 8.

(86) [1963] W.A.R. 129.

(87) [1981] V.R. 247.

(88) [1975] 1 N.S.W.L.R. 298; (1975) 5 A.L.R. 387.

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The Court recognized the desirability of following the decision of an appellate court of co-ordinate jurisdiction in the same exercise of federal jurisdiction, but in addition it expressed its support for the reasoning in the case (89):

“However, we think that *Bush’s Case* . . . was correctly decided. In *Reg. v. Rawcliffe* (90) a Court of Criminal Appeal consisting of five judges refused to uphold a submission that *Bush’s Case* was wrongly decided. Since then it has been followed in many cases. See *Reg. v. Router* (91); *Reg. v. Malas* (92) and *Reg. v. Kennedy* (93).”

In *Bush*, Nagle J. delivered the judgment of the Court. In a close analysis of the problem, his Honour first disposed of the submission that mens rea was a separate ingredient in the offence created by par. (c). It was observed that there was no such express requirement on the Crown to prove that the appellant should have had knowledge of, or reason to suspect, the nature of the contents of the parcel of which he obtained control. Any implication of such a requirement was rejected, having regard to the importance of effective measures to control illicit traffic in narcotic drugs: cf. *Reg. v. Peel* (94). However, the Court held that the section did not exclude the exculpatory principle by which the person charged may prove an honest belief on reasonable grounds in the existence of circumstances which, if true, would make innocent that with which he is charged; their Honours found this exculpation encompassed by the terms of par. (c) which allow for any reasonable excuse, proof of which is to lie on the accused. Reference was made to a comment by Barwick C.J. in *Reg. v. Bull* (95) to the effect that knowledge of the nature of the thing possessed is not essential to the commission of the offence under s. 233B(1)(a). Thus far the decision merely reinforces in general terms the reasoning which has led me to the conclusion I have expressed in respect of the first submission of the applicant. The distinctive point in his second submission is that the concept of possession as used in par. (c) itself imports a mental element requiring knowledge of the nature of the goods allegedly possessed which must be proved by the Crown as part of its case. In *Bush* Nagle J. examines a similar submission at great depth. He relies on the decision of this Court in *Williams v. Douglas* (96) in coming to the conclusion that the kind of possession intended when

(89) [1981] V.R., at p. 254.

(90) [1977] 1 N.S.W.L.R. 219.

(91) (1977) 14 A.L.R. 365.

(92) (1978) 21 A.L.R. 225.

(93) (1979) 25 A.L.R. 367.

(94) [1971] 1 N.S.W.L.R. 247.

(95) (1974) 131 C.L.R. 203, at p. 220.

(96) (1949) 78 C.L.R. 521, at pp. 526, 527.

used in relation to dangerous drugs or narcotic goods is limited to de facto possession. His Honour then proceeds to demonstrate persuasively that the mental element involved extends no further than the intention inherent in de facto possession of such goods, namely, the intention to have exclusive physical control of some article which is in fact narcotic goods or of some article or some place wherein such goods are in fact carried or contained or located (97). It is not inherent in that mental element that an accused should know that an item in his de facto possession is narcotic goods. It is for the accused to advance his ignorance of that fact as a "reasonable excuse" for his possession. The scope of that defence was illustrated, as the Court thought, by the cases of *Poole v. Wah Min Chan* (98) and *Reg. v. Tawill* (99). As I have already noted, the former case is a decision of this Court on s. 233(1)(d) of the Act, the provisions of which were similar to s. 233B(1)(c). It was held that possession without reasonable excuse of prohibited imports, in itself and independently of any further mental element consisting in knowledge that the goods are prohibited imports, is an offence, but that a defendant may be able to show that he had no reason to believe that the goods were prohibited and thereby provide a reasonable excuse (1). Of course, as the Court in *Bush* explained, this decision was out of line with the decision in *Hill v. Donohoe* (2) with respect to s. 233B(1)(c). Harmony was restored by the enactment in 1967 of sub-s. (1A) which in effect overruled *Hill v. Donohoe*. *Tawill* was a case involving par. (c), but the defence was one of duress. The Court held that duress was to be comprehended within "reasonable excuse". Referring to the scope of the defence, the Court said (3):

"The words 'without reasonable excuse' are words of wide import. We see no reason why defences, answers, justifications or excuses recognized by the established principles governing criminal responsibility, such as absence of mens rea, mistake, insanity, infancy or duress, do not fall within the ordinary grammatical meaning of those words."

In *Rawcliffe* (4), provision was made for a court of five judges to review the decision in *Bush* (5). The Court unanimously endorsed the decision. However, in *Kennedy* (6), a case involving somewhat different facts, Roden J. found himself unable to agree with the decision. His Honour's well-reasoned dissent deserves serious con-

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(97) [1975] 1 N.S.W.L.R., at p. 324;
(1975) 5 A.L.R., at pp. 414-415.

(98) (1947) 75 C.L.R. 218.

(99) [1974] V.R. 84.

(1) (1947) 75 C.L.R., at p. 227.

(2) (1911) 13 C.L.R. 224.

(3) [1975] 1 N.S.W.L.R., at p. 327;
(1975) 5 A.L.R., at p. 418.

(4) [1977] 1 N.S.W.L.R. 219.

(5) [1975] 1 N.S.W.L.R. 298; (1975) 5 A.L.R. 357.

(6) (1979) 37 F.L.R. 356; 25 A.L.R. 367.

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sideration. It seems to me that the dissent centres on an acceptance of the proposition that to establish possession there must be shown "a necessary mental element of intention, involving a sufficient knowledge of the presence of the drug by the accused": per Aickin J. in *Williams v. The Queen* (7). It must be borne in mind that Aickin J. was dealing with the concept of possession in a different statute and it is readily acknowledged that in construing a word like "possession" the context is of great importance. With all respect to Roden J., I think the mental element to which he refers is deliberately and expressly taken up by the legislature in the provision for reasonable excuse. Admittedly, the point involves a question of fundamental principle and that the transfer of an onus from the prosecution to an accused person can have serious consequences for that person. As Roden J. says (8):

"If he [the accused] says that he picked it up by mistake, the jury would be directed to convict, even if they entertained a real doubt on that mistake issue; even indeed if 'the scales of probability' were found by them to be evenly balanced and they were unable to decide the issue one way or the other."

However, two things must be borne in mind. First, the social evil to which the section is directed is a very serious one. Secondly, the difficulties of enforcement would be enormous if the Crown were obliged to disprove beyond reasonable doubt any innocent explanation of the proved de facto possession that might possibly be relevant. I think it must follow that the express provision for the accused person to prove the existence of any reasonable excuse for his proved possession of narcotic goods points to the conclusion that the legislature intended to limit the obligation on the prosecution to proof of de facto possession of prohibited imports in the manner found by the Court in *Bush* and confirmed in *Rawcliffe*. For these reasons I am unable to endorse the stand taken by Roden J.

The submission for the applicant with respect to the count of possession must be rejected.

This leaves the question as to what the Court should do. In my opinion, the questions are of such importance that special leave to appeal should be granted. My conclusion on the question of the onus of proof of an offence under s. 233B(1)(b) has the consequence that the trial judge was in error in directing the jury that it was for the accused man to establish by way of defence that he had an honest and reasonable belief in a state of facts which if they existed would make his act innocent. There was an evidential onus in that

(7) (1978) 53 A.L.J.R. 101, at p. 108; 22 A.L.R. 195, at p. 209.

(8) (1979) 37 F.L.R., at p. 380; 25 A.L.R., at p. 389.

respect on the accused but it was for the prosecution to satisfy the jury beyond a reasonable doubt that he did not have that belief. Ordinarily, such a conclusion would require that the conviction be set aside and a new trial ordered. However, it would appear that when sentencing the applicant the trial judge referred to the fact that he was “knowingly acting as a courier”. The heroin was concealed in the bottom of the bag which the accused was carrying and its weight was such that the presence of some substance secreted in the bottom of the bag must have been known to him. If these facts were established then this would seem to be an appropriate case for the application of the proviso that enables the Court to dismiss an appeal notwithstanding an irregularity in the conduct of the trial, in the event that it is satisfied that no substantial miscarriage of justice has occurred: *Crimes Act* 1958 (Vic.), as amended, s. 568(1). The materials are not before the Court to enable a firm conclusion to be made in this regard and in any event no argument has been directed to it. In the circumstances, I would remit the matter to the Court of Criminal Appeal to determine the point. If the Court is not satisfied that there has been no substantial miscarriage of justice, then it will order a new trial.

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BRENNAN J. The question for decision is whether, in a prosecution for offences under s. 233B(1)(b) and (c) of the *Customs Act* 1901 (“the Act”), it is necessary for the prosecution to prove the accused knew that the thing which he had imported or which he had in his possession was “prohibited imports to which this section applies”. The question arises in this way. The applicant had travelled by air from Kuala Lumpur to Melbourne and on his disembarking at the Melbourne airport on 20 October 1982 he was found to be in possession of a bag which he had brought with him. His bag was inspected by Customs officials. It contained 2.788 kilograms of heroin in a false bottom. Heroin is a prohibited import to which s. 233B applies. The applicant was charged before the County Court in Victoria with importing that heroin (par. (b)) and with having that heroin in his possession (par. (c)). He pleaded not guilty. The learned trial judge, Judge Tolhurst, directed the jury that, on the charge of importing, the prosecution—

“does not have to prove any state of mind or knowledge of the accused. . . . No specific state of mind, whether of motive, intention, knowledge or advertence, need be proved by the Crown. If the accused man establishes by way of defence that he had an honest and reasonable belief in a state of facts which if they existed would make his act innocent, that would afford a defence to this charge. You will note, however, that the onus of establishing such a defence is upon him.”

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His Honour directed the jury that, on the charge of having in possession —

“... Again no specific state of mind, whether of motive, intention, knowledge or advertence, need be proved by the Crown. Further, the Crown does not have to prove that the accused knew that the goods in his possession had been imported into Australia in contravention of the *Customs Act*. You will have noted that in respect of this second charge, the words ‘without reasonable excuse’ are used. The Crown does not have to prove the accused man did not have reasonable excuse. Proof that he had reasonable excuse rests upon the accused.”

The applicant was convicted on both counts. His appeal to the Full Court of the Supreme Court failed, as it was bound to do. The learned trial judge had directed the jury in accordance with what the Full Court had held the law to be in *Reg. v. Parsons* (9) (with reference to importing) and in *Reg. v. Ditroia and Tucci* (10) (with reference to possession). This application for special leave to appeal raises for consideration the correctness of those decisions and the antecedent cases on which they were based, especially *Reg. v. Gardiner* (11); *Reg. v. Bush* (12); and *Reg. v. Bonnor* (13). Some fundamental questions of criminal responsibility arise.

The General Principles.

It is generally true to say (as Barwick C.J. pointed out in *Ryan v. The Queen* (14)) that an act or omission done or made by a person is the essential foundation of his criminal responsibility. Having something in possession is not easily seen as an act or omission; it is more easily seen as a state of affairs (cf. per Gibbs J. in *Beckwith v. The Queen* (15)), but it is a state of affairs that exists because of what the person who has possession does in relation to the thing possessed. “Possession is proved by various acts varying with the nature of the subject matter”: Isaacs J. speaking for the Court in *Moors v. Burke* (16). There are some few anomalous offences, of which *Germaine Larssonneur* (17) is an example, which are not founded on an offender’s acts or omissions but they may be put aside in considering the general principles of criminal responsibility applicable to most offences. Criminal responsibility depends not only upon a person’s act or omission but also upon the circumstances in

(9) [1983] 2 V.R. 499.

(10) [1981] V.R. 247.

(11) [1981] Qd R. 394; (1979) 27 A.L.R. 140.

(12) [1975] 1 N.S.W.L.R. 298; (1975) 5 A.L.R. 387.

(13) [1957] V.R. 227.

(14) (1967) 121 C.L.R. 205, at p. 213.

(15) (1976) 135 C.L.R. 569, at p. 575.

(16) (1919) 26 C.L.R. 265, at p. 271.

(17) (1933) 24 Cr.App.R. 74.

which the act is done or the omission made, usually upon his state of mind at that time and sometimes upon the results of his act or omission. However, the definition of a criminal offence ordinarily comprehends only the prohibited act or omission (conduct), the circumstances in which the act is done or the omission is made and, in some instances, the results of the act or omission. These elements — conduct, circumstances and results — are what Dixon C.J. in *Vallance v. The Queen* (18) called “the external elements necessary to form the crime”. When a statute creates and defines an offence only by reference to its external elements, a mental element is usually implied in the definition. A person who engages in prohibited conduct is not criminally responsible for it unless the mental element is present. The mental element is mens rea or guilty mind. In *Reg. v. O'Connor* (19), Stephen J. stated the modern approach to mens rea:

“As Stephen J. pointed out in *Reg. v. Tolson* (20), ‘The full definition of every crime contains expressly or by implication a proposition as to a state of mind. Therefore, if the mental element of any conduct alleged to be a crime is proved to have been absent in any given case, the crime so defined is not committed . . .’. (The reference to proof of absence must now, of course, be read in the light of *Woolmington v. Director of Public Prosecutions* (21).) The mental element that must be present is a state of mind such as Lord Simon described, in *Majewski* (22), as ‘stigmatized as wrongful by the criminal law’: it is that state of mind which, when compounded with prohibited conduct, constitutes the particular offence (23). As Dickson J. said in *Leary v. The Queen* (24), ‘Society and the law have moved away from the primitive response of punishment for the actus reus alone’. Thus in *Bratty v. Attorney-General (Northern Ireland)* (25) the Lord Chancellor, in describing ‘the overriding principle, laid down by this House in *Woolmington’s Case*’ said, ‘that it is for the prosecution to prove every element of the offence charged. One of these elements is the accused’s state of mind.’”

The requirement of mens rea avoids what Lord Reid called “the public scandal of convicting on a serious charge persons who are in no way blameworthy”: *Sweet v. Parsley* (26). Nowadays, a presumption is made that mens rea is an element in a statutory offence though the offence is defined only by reference to its external

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(18) (1961) 108 C.L.R. 56, at p. 59.

(19) (1980) 146 C.L.R. 64, at pp. 96-97.

(20) (1889) 23 Q.B.D., at 187.

(21) [1935] A.C. 462.

(22) [1977] A.C. 443.

(23) [1977] A.C., at p. 478.

(24) (1977) 74 D.L.R. (3d), at p. 122.

(25) [1963] A.C. 386, at p. 407.

(26) [1970] A.C. 132, at p. 150.

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elements. The presumption was stated by R. S. Wright J. in *Sherras v. De Rutzen* (27):

“There is a presumption that mens rea, an evil intention, or a knowledge of the wrongfulness of the act, is an essential ingredient in every offence; but that presumption is liable to be displaced either by the words of the statute creating the offence or by the subject-matter with which it deals, and both must be considered . . .”

That statement has not been doubted. I would respectfully agree with Lord Goddard C.J. who said in *Brend v. Wood* (28):

“It is of the utmost importance for the protection of the liberty of the subject that a Court should always bear in mind that, unless a statute, either clearly or by necessary implication, rules out mens rea as a constituent part of a crime, the Court should not find a man guilty of an offence against the criminal law unless he has a guilty mind.”

That passage has been referred to with approval by the majority of the Supreme Court of Canada in *Beaver v. The Queen* (29); by Lord Reid and by Lord Morris of Borth-y-Gest in *Reg. v. Warner* (30); by Lord Morris in *Sweet v. Parsley* (31) and by the Judicial Committee in an Indian appeal mentioned in *Lim Chin Aik v. The Queen* (32). It is now firmly established that mens rea is an essential element in every statutory offence unless, having regard to the language of the statute and to its subject-matter, it is excluded expressly or by necessary implication: *Lim Chin Aik* (33); *Sweet v. Parsley* (34); *Cameron v. Holt* (35). Earlier doubts as to the existence of the presumption or as to its strength (see, e.g., *Proudman v. Dayman* (36)) have now been removed.

Recently, in *Gammon Ltd. v. Attorney-General (Hong Kong)* (37) Lord Scarman, delivering the judgment of the Judicial Committee, stated five propositions:

“(1) there is a presumption of law that mens rea is required before a person can be held guilty of a criminal offence; (2) the presumption is particularly strong where the offence is ‘truly criminal’ in character; (3) the presumption applies to statutory offences, and can be displaced only if this is clearly or by necessary implication the effect of the statute; (4) the only situation in which the presumption can be displaced is where

(27) (1895) 1 Q.B. 918, at p. 921.

(28) (1946) 62 T.L.R. 462, at p. 463.

(29) [1957] S.C.R. 531, at pp. 537-538.

(30) [1969] 2 A.C. 256, at pp. 275, 294.

(31) [1970] A.C., at p. 152.

(32) [1963] A.C. 160, at p. 173.

(33) [1963] A.C., at p. 173.

(34) [1970] A.C., at pp. 149, 152, 156.

(35) (1980) 142 C.L.R. 342, at pp. 346, 348.

(36) (1941) 67 C.L.R. 536, at p. 540.

(37) [1985] 1 A.C. 1, at p. 14.

the statute is concerned with an issue of social concern, and public safety is such an issue; (5) even where a statute is concerned with such an issue, the presumption of mens rea stands unless it can also be shown that the creation of strict liability will be effective to promote the objects of the statute by encouraging greater vigilance to prevent the commission of the prohibited act."

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The first three propositions correctly emphasize the strength which contemporary authority gives to the presumption that mens rea is an essential element of an offence. The fourth proposition, if I may say so with respect, seems to be too categorical an approach to what is, after all, a question of statutory interpretation. It is not possible to decide that mens rea can be excluded only where the subject-matter answers a given description (even so general a description as "an issue of social concern"), without regard to the whole of the statutory context. The fifth proposition reflects the purpose of the criminal law: to deter a person from engaging in prohibited conduct. The penalties of criminal law cannot provide a deterrent against prohibited conduct to a person who is unable to choose whether to engage in that conduct or not, or who does not know the nature of the conduct which he may choose to engage in or who cannot foresee the results which may follow from that conduct (where those results are at least part of the mischief at which the statute is aimed). It requires clear language before it can be said that a statute provides for a person to do or to abstain from doing something at his peril and to make him criminally liable if his conduct turns out to be prohibited because of circumstances that that person did not know or because of results that he could not foresee. However grave the mischief at which a statute is aimed may be, the presumption is that the statute does not impose criminal liability without mens rea unless the purpose of the statute is not merely to deter a person from engaging in prohibited conduct but to compel him to take preventive measures to avoid the possibility that, without deliberate conduct on his part, the external elements of the offence might occur. A statute is not so construed unless effective precautions can be taken to avoid the possibility of the occurrence of the external elements of the offence. In *Lim Chin Aik* (38), Lord Evershed speaking for the Judicial Committee said:

"But it is not enough in their Lordships' opinion merely to label the statute as one dealing with a grave social evil and from that to infer that strict liability was intended. It is pertinent also to inquire whether putting the defendant under strict liability will assist in the enforcement of the regulations. That means that

(38) [1963] A.C., at p. 174.

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there must be something he can do, directly or indirectly, by supervision or inspection, by improvement of his business methods or by exhorting those whom he may be expected to influence or control, which will promote the observance of the regulations. Unless this is so, there is no reason in penalizing him, and it cannot be inferred that the legislature imposed strict liability merely in order to find a luckless victim.”

The requirement of mens rea is at once a reflection of the purpose of the statute and a humane protection for persons who unwittingly engage in prohibited conduct.

It is one thing to say that mens rea is an element of an offence; it is another thing to say precisely what is the state of mind that is required. It is the “beginning of wisdom”, as Lord Hailsham of St. Marylebone said in *Reg. v. Morgan* (39), to see “that ‘mens rea’ means a number of quite different things in relation to different crimes”. Indeed, it may connote different states of mind in respect of the several external elements of the same crime. If A strikes B and causes him bodily harm, A’s moral blameworthiness may depend on whether A moved accidentally, or whether he was unaware that B or anybody else was there, or whether he did not mean to cause bodily harm and could not and did not foresee that he would cause bodily harm. The particular mental states that apply to the several external elements of an offence must be distinguished, not only as a matter of legal analysis, but in order to maintain tolerable harmony between the criminal law and human experience.

Moral excuses find counterparts in the categories of mental states that are indifferently described as mens rea and that apply to the several external elements of an offence. Thus, voluntariness and intent are the mental states ordinarily applicable to an act involved in an offence, knowledge or the absence of an honest and reasonable but mistaken belief is the mental state ordinarily applicable to the circumstances in which a relevant act is done or omission is made and, where a mental state is applicable to results, it may be either foresight of the possibility of their occurrence (if recklessness is an element) or knowledge of the probability (or likelihood) of their occurrence or an intention to cause them (if a specific intent is an element). A mental state is inherently hard to define, and the definition of mens rea is beset by problems of terminology. Voluntariness, for example, connotes a number of different mental states: see per Windeyer J. in *Ryan* (40); it includes a conscious control of bodily movement. Voluntariness in that sense applies to an “act” regarded as a contraction of the muscles (to use Mr. Justice Holmes’s term in *The Common Law* (1881) at p. 54), so that a

(39) [1976] A.C. 182, at p. 213.

(40) (1967) 121 C.L.R., at p. 244.

person is not criminally responsible for an involuntary movement or reflex action. If an "act" is described so as to include the circumstances in which the muscles are contracted, a different state of mind is applicable, ordinarily called "intent". Intent, in one form, connotes a decision to bring about a situation so far as it is possible to do so — to bring about an act of a particular kind or a particular result. Such a decision implies a desire or wish to do such an act or to bring about such a result. Thus when A strikes B (the act) having decided to or desiring or wishing to strike him, it can be said that he intends to strike B. Intent, in another form, connotes knowledge. This appears more clearly if we divide an action, somewhat artificially, into a mere movement and the circumstances that are an integral part of the action and which give it its character. When A strikes B, his action can be divided into A's movement of his fist and B's presence in the path of A's movement. Although A's movement may be voluntary, he is not said to strike B intentionally unless he knows that B (or someone else) is in the path of his moving fist. If mens rea were imported into an offence defined as striking another — a definition that does not include a result — two states of mind would normally be involved: voluntariness of movement and an intention to strike another — and intention is, for all practical purposes, established by knowledge that another person is, or is likely to be, in the path of the movement. If the definition is extended to include a result — causing bodily harm — the statute may prescribe a further mental element: ordinarily a specific or special intent to cause bodily harm.

Judicial examination of the distinction between the various forms of mens rea has not been extensive. Thus, Barwick C.J. who had noted in *O'Connor* (41) that mens rea ordinarily requires a general or basic intent at least to do the physical act involved in the crime charged, observed in *Ryan* (42) that "... there has not been any frequent need to express with technically expressed precision the difference between that element of mens rea which relates the will to act to the deed in question and that element which relates to it the general intent with which that will was exercised". Nonetheless, voluntariness and general intent are distinct mental states. General intent and specific intent are also distinct mental states. General or basic intent relates to the doing of the act involved in an offence; special or specific intent relates to the results caused by the act done. In statutory offences, general or basic intent is an intent to do an act of the character prescribed by the statute creating the offence; special or specific intent is an intent to cause the results to which the

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(41) (1980) 146 C.L.R., at p. 76.

(42) (1967) 121 C.L.R., at p. 213.

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intent is expressed to relate. Both general intent and specific intent may be established by knowledge: the former by knowledge of the circumstances which give the act its character, the latter by knowledge of the probability of the occurrence of the result to which the intent is expressed to relate. But existing circumstances can be known more certainly than the probability of the occurrence of a future result, and therefore specific intent is usually established by proof of a desire or wish to cause the prescribed result, whereas general intent is usually established by proof of knowledge of circumstances prescribed by the statute as defining the act involved in the commission of the offence. Of course, proof of an actual desire or wish to do an act of the prescribed character is proof of a general intent (cf. *Reg. v. Reynhoudt* (43); *Morgan* (44)), but for practical purposes knowledge of the circumstances which give the act its character when an act is voluntarily done is the ordinary form of an intent to do it. A specific intent to cause a prescribed result can be, but is not ordinarily, established by knowledge that such a result will probably (or is likely to) occur: *Reg. v. Crabbe* (45). Just as knowledge of the probable (or likely) results of an act establishes a specific intent to cause those results, so the doing of an act with knowledge that the circumstances are probably such as to make the act criminal establishes a general intent to do an act of that character. That is not to say that some state of mind less than knowledge is sufficient to establish intent. Actual knowledge is required (*Giorgianni v. The Queen* (46)) but what is generally required to be known is at least the likelihood that the prescribed result of an act will occur (specific intent) or at least the likelihood that the existing circumstances are such as to give an act the character of the act involved in the commission of the offence in question (general intent).

Voluntariness, general intent and specific intent are three categories of mens rea that may be (but are not always) mental elements applicable to the external elements of an offence. Voluntariness and general intent are generally implied in a statute creating an offence as mental elements applicable to the act involved in the offence; specific intent is not implied. When a specific intent is expressed to be an element, it is ordinarily expressed to apply only to results. The definition of circumstances attendant upon but not an integral part of the act involved in the offence may (but does not always) imply another mental element: knowledge or the absence of

(43) (1962) 107 C.L.R. 381, at
pp. 398-399.
(44) [1976] A.C., at p. 210.

(45) (1985) 156 C.L.R. 464.
(46) (1985) 156 C.L.R. 473, at
pp. 504-507.

an honest and reasonable but mistaken belief as to the existence of those circumstances. The distinction between the act and the circumstances which attend its occurrence is frequently of no moment, because for all practical purposes the same mental element — knowledge — is the requisite mental element ordinarily applicable both to the act and the circumstances. But if there be a legislative intention to apply a mental element to the circumstances different from the mental element applicable to the act involved in the offence, it is necessary to decide what circumstances are defined to be an integral part of the act (to which intent and therefore knowledge will ordinarily apply) and what circumstances are defined to be merely attendant (to which no mental element may be intended to apply or to which a mental element less than knowledge may be intended to apply). One of the intractable difficulties in the process of identifying the particular category of mens rea that applies to the respective external elements of an offence is the identification of the prohibited act on the one hand and the circumstances attendant on the doing of that act on the other. It is a problem involved in this case.

Analysis of the external elements of an offence as a step in the ascertaining of the mens rea required is manifestly necessary when the effect of intoxication arises for consideration, as it often does. In this country, where the decision in *O'Connor* (47) requires that intoxication be regarded in ascertaining whether mens rea exists, it is essential to bear in mind that different levels of intoxication affect the mind in different ways, and partial intoxication at a particular level may be relevant to the existence of one mental state but not to the existence of another. The level of intoxication that is relevant to whether a movement is voluntary is far greater than the level of intoxication that is relevant to whether a specific intention is formed. Therefore the ascertainment of the criminal responsibility of a partially intoxicated offender depends on a proper identification of the mental state to which the partial intoxication is relevant. That approach is radically different from the approach now adopted in the United Kingdom in *Reg. v. Majewski* (48), and rejected by this Court in *O'Connor*. The *Majewski* rule that intoxication is irrelevant to crimes of basic intent is of less significance if basic intent is held to relate merely to the physical act involved in the commission of an offence, but that was not the approach adopted in *Morgan* (49). In *Morgan*, a rape case, the speeches treated the relevant external elements of the crime (sexual intercourse and non-

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(47) (1980) 146 C.L.R. 64.

(49) [1976] A.C. 182.

(48) [1977] A.C. 443.

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consent) as integral parts of the whole act to which a single mental state (intent) applied. It followed that intent applied not only to the physical act of intercourse but to the element of non-consent.

In the present case we are concerned with the form of mens rea that relates to conduct defined as importing and having in possession. The principle applicable at common law was stated by Jordan C.J. in *R. v. Turnbull* (50):

“... it is also necessary at common law for the prosecution to prove that he knew that he was doing the criminal act which is charged against him, that is, that he *knew that all the facts constituting the ingredients necessary to make the act criminal were involved in what he was doing*. If this be established, it is no defence that he did not know that the act which he was consciously doing was forbidden by law. Ignorance of the law is no excuse. But it is a good defence if he displaces the evidence relied upon as establishing his knowledge of the presence of some essential factual ingredient of the crime charged.” (Emphasis added.)

In *O'Connor* (51), Stephen J. defined “criminal intention” by citing Jordan C.J.’s statement of the requirement of knowledge. Prima facie, the requirement of knowledge relates not only to the facts which give character to the physical act involved in the commission of the offence but also to the circumstances which attend its occurrence and make it criminal.

Mens rea has sometimes been defined in terms which require a state of mind less than knowledge of the facts which make the act criminal. In *Reg. v. Tolson* (52), Cave J. stated the principle in this way:

“At common law an honest and reasonable belief in the existence of circumstances, which, if true, would make the act for which a prisoner is indicted an innocent act has always been held to be a good defence. This doctrine is embodied in the somewhat uncouth maxim ‘actus non facit reum, nisi mens sit rea’.”

In *Bank of N.S.W. v. Piper* (53), the Judicial Committee said:

“... the absence of mens rea really consists in an honest and reasonable belief entertained by the accused of the existence of facts which, if true, would make the act charged against him innocent”.

This was the view also of Sir Samuel Griffith who, when he submitted his draft Criminal Code, stated the common law to be the

(50) (1943) 44 S.R. (N.S.W.) 108, at p. 109. (52) (1889) 23 Q.B.D. 168, at p. 181.

(51) (1980) 146 C.L.R., at p. 97. (53) [1897] A.C. 383, at pp. 389-390.

source of the provision drafted as s. 26 and enacted as s. 24 of the *Criminal Code* (Q.) which reads:

“A person who does or omits to do an act under an honest and reasonable, but mistaken, belief in the existence of any state of things is not criminally responsible for the act or omission to any greater extent than if the real state of things had been such as he believed to exist.

The operation of this rule may be excluded by the express or implied provisions of the law relating to the subject.”

See also *Hardgrave v. The King* (54) and *Thorne v. Motor Trade Association* (55), where this defence was stated to be of general application.

The “defence” of an honest and reasonable belief in the existence of facts which, if true, would make the act charged innocent raises for present consideration two questions: first, can it apply to circumstances that, on a proper construction of the statute creating an offence, are an integral part of the act involved? and second, is it a “defence” which the prosecution bears the ultimate onus of disproving? The answer to the first question will appear more clearly when the second is resolved.

In earlier times, criminal responsibility was imposed upon or imputed to an accused upon proof of the external elements alone: see J. W. C. Turner, *Russell on Crime*, 12th ed. (1964), vol. 1 at pp. 33-34. An honest and reasonable but mistaken belief in a state of facts which would make the supposed offender's act innocent was therefore treated as an excuse for or a true exception to criminal responsibility: see by way of example, *Stephen's Digest of the Criminal Law*, 3rd ed. (1883), Ch. III, “General Exceptions”. The origin of that state of mind as an exception is reflected in the exculpatory form in which it appears in the Criminal Codes which adopt Sir Samuel Griffith's draft, as Windeyer J. pointed out in *Mamote-Kulang v. The Queen* (56). But since *Woolmington v. Director of Public Prosecutions* (57) it has come to be recognized that the prosecution bears the ultimate onus of negating “defences” under the Codes: see *Packett v. The King* (58); *Brimblecombe v. Duncan*; *Ex parte Duncan* (59). In *Bank of N.S.W. v. Piper*, the absence of mens rea was said to consist in the existence of the exculpating belief. Conversely, the absence of the exculpating belief should be regarded as a form of mens rea. It is no more appropriate for the common law than it is for the Codes to regard

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(54) (1906) 4 C.L.R. 232, at p. 237.

(55) [1937] A.C. 797, at p. 809.

(56) (1964) 111 C.L.R. 62, at pp. 76-77.

(57) [1935] A.C. 462.

(58) (1937) 58 C.L.R. 190, at p. 212.

(59) [1958] Qd R. 8.

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the defence of an honest and reasonable but mistaken belief merely as an excuse for committing an offence that is fully constituted by its external elements. In principle, the absence of such a belief must also be treated as a form of mens rea at common law and an element of the offence which the Crown must prove. The golden thread of which Viscount Sankey L.C. spoke in *Woolmington* has been woven through the material of all criminal offences. That seems to have been the tentative view of Dixon J. in *Proudman v. Dayman* where he said (60):

“The burden of establishing honest and reasonable mistake is in the first place upon the defendant and he must make it appear that he had reasonable grounds for believing in the existence of a state of facts, which, if true, would take his act outside the operation of the enactment and that on those grounds he did so believe. The burden possibly may not finally rest upon him of satisfying the tribunal in case of doubt.”

Lord Diplock in *Sweet v. Parsley* (61), following what he understood to be the approach of Dixon J. in *Proudman v. Dayman*, stated the position thus:

“Unlike the position where a statute expressly places the onus of proving lack of guilty knowledge on the accused, the accused does not have to prove the existence of mistaken belief on the balance of probabilities; he has to raise a reasonable doubt as to its non-existence.”

Lord Pearce (62) seemed to doubt whether the defence of an honest and reasonable but mistaken belief could be accepted consistently with *Woolmington* if the onus of proving the defence rested on the defendant. Menhennitt J. in *Kidd v. Reeves* (63), and the New Zealand Court of Appeal in *Reg. v. Strawbridge* (64), have held that the onus of disproving that an accused had an honest and reasonable belief in facts which, if true, would make his act innocent rests on the prosecution in cases where that defence is open.

In *Mayer v. Marchant* (65), Bray C.J. referring to *Proudman v. Dayman* and canvassing the relevant authorities said:

“The implications of *Woolmington’s Case* have only gradually been recognized, not, on occasions, without disquiet at their width; see, for example, *Sweet v. Parsley* (66), per Lord Pearce. Once they are, it must, in my view, be accepted that the ultimate onus is always on the Crown, except in the case of insanity or where the onus is shifted by statute, and it does not matter whether the offence is the creature of common law or of statute.”

(60) (1941) 67 C.L.R., at p. 541.

(61) [1970] A.C., at p. 164.

(62) [1970] A.C., at p. 158.

(63) [1972] V.R. 563, at p. 565.

(64) [1970] N.Z.L.R. 909, at p. 915.

(65) (1973) 5 S.A.S.R. 567, at

p. 570.

(66) [1970] A.C., at p. 158.

In the absence of contrary statutory provision and apart from insanity an accused cannot be required to prove a mental state as an excuse.

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The next question is: to what external elements does the defence of honest and reasonable but mistaken belief apply and, in particular, does it apply to circumstances that are an integral part of the act involved in an offence? As intent is the mental state ordinarily required in respect of the doing of an act involved in the commission of an offence, any mental state less than knowledge would not be presumed to apply to the circumstances which give that act its character. A mental state less than knowledge can apply more readily to circumstances attendant on the occurrence of an act involved in the commission of an offence being circumstances which make the act criminal. The absence of an exculpatory belief can apply to such circumstances where the *prima facie* requirement (knowledge) is excluded. Clearly knowledge and an absence of exculpatory belief cannot both apply to the same external element for they are different mental states. An absence of an honest and reasonable but mistaken belief is not the equivalent of knowledge of the facts which make the act criminal: in the first place, an absence of a mistaken belief is something less than knowledge. Thus inadvertence to a fact does not amount to knowledge of that fact, but it is consistent with the absence of a mistaken belief about it. In the second place, the reasonableness of an exculpatory belief is an objective matter. An unreasonable mistake is inconsistent with knowledge, yet it would satisfy the test of *mens rea* according to *Bank of N.S.W. v. Piper* (67). As knowledge and mistaken belief cannot co-exist in relation to the same fact, the difference between the two states of mind may be critical to criminal responsibility in some cases: cf. *Reg. v. Kimber* (68). It is therefore necessary to determine which state of mind applies to a particular external element of a statutorily defined offence once it appears that some mental element is applicable. The absence of an honest and reasonable but mistaken belief can be the mental state applicable to existing circumstances but only if the *prima facie* requirement of knowledge is excluded. In *Maher v. Musson* (69), Dixon J. held that, in a charge of having custody of illicit spirits, knowledge of the character of the illicit spirits was not an element of the offence, but he said:

“Nevertheless, in the case alike of an offence at common law

(67) (1897) A.C. 383.

(68) [1983] 1 W.L.R. 1118, at
pp. 1121-1122; [1983] 3 All
E.R. 316, at pp. 319-320.

(69) (1934) 52 C.L.R. 100, at
pp. 104-105.

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and, unless expressly or impliedly excluded by the enactment, of a statutory offence, it is a good defence that the accused held an honest and reasonable belief in the existence of circumstances, which, if true, would make innocent the act for which he is charged (per Cave J., *Reg. v. Tolson* (70)). What grounds may exist for excluding this exception as a defence are discussed more at large by Wills J. in that case, and by Wright J. in *Sherras v. De Rutzen* (71), and it is clear that inference from subject matter may readily be made a ground of implied exclusion.”

And in *Proudman v. Dayman* (72) where the charge was one of permitting a person, not being the holder of a driving licence, to drive on a road, his Honour said (73):

“It is one thing to deny that a necessary ingredient of the offence is positive knowledge of the fact that the driver holds no subsisting licence. It is another to say that an honest belief founded on reasonable grounds that he is licensed cannot exculpate a person who permits him to drive. As a general rule an honest and reasonable belief in a state of facts which, if they existed, would make the defendant’s act innocent affords an excuse for doing what would otherwise be an offence.”

If there are alternative states of mind — knowledge or absence of exculpatory belief — that may apply to circumstances which are external elements of a statutory offence, how is the applicable state of mind to be ascertained? Principally, by reference to the language of the statute and its subject-matter. From those sources, the mischief at which the statute is aimed is derived, and the purpose of the statute is perceived. The purpose of the statute is the surest guide of the legislature’s intention as to the mental state to be implied. The ascertainment of the legislature’s intention in the case of a statutory offence is not likely to be any easier than the ascertainment of the relevant mental element in some common law crimes. The question as to the required state of mind as to non-consent in the crime of rape — “whether the definition of mens rea in rape should be formulated in terms of intention or in terms of belief” (per Bray C.J. in *Reg. v. Wozniak* (74)) — has not received a uniform answer in this country (see, amongst a large number of cases, *Reg. v. Sperotto* (75) and *Wozniak*). Substantial arguments support either view and the controversy illustrates the difficulty in ascertaining the true form of mens rea in a particular offence when the legislature has not expressed its intention. At the moment, consistently with the notion that intent applies to all the circum-

(70) (1889) 23 Q.B.D. 168, at p. 181.

(71) [1895] 1 Q.B. 918.

(72) (1941) 67 C.L.R. 536.

(73) (1941) 67 C.L.R., at p. 540.

(74) (1977) 16 S.A.S.R. 67, at p. 70.

(75) (1970) 71 S.R.(N.S.W.) 334.

stances which make an act criminal, the controversy seems to have swung in favour of the *Morgan* (76) view in the States which have not adopted a Code (*Wozniak*; *Reg. v. McEwan* (77); *Reg. v. Saragozza* (78)) despite some reservations that have been expressed in England (see Cowley, "The Retreat from Morgan", (1982) *Criminal Law Review* 198) and despite the view adopted under the Code: *Re Attorney-General's Reference No. 1 of 1977* (79). This is not the occasion for settling that controversy, for we are concerned with a different offence, statutorily defined, that contains different external elements and that is aimed at a different mischief. Assuming that there are external elements of the offences created by s. 233B(1)(b) and (c) which are circumstances attendant on the physical acts of importing and having in possession, it would be necessary to decide whether the purpose of the statute is more consonant with the imposition of criminal liability only if the relevant circumstances are known or with the imposition of criminal liability for doing the physical act unless the person who does it reasonably but mistakenly believes that he is acting in circumstances which, if true, would make his act innocent. *Reynhoudt* (80) is an illustration of a similar difficulty encountered in ascertaining what mental element applies to the external elements of a statutory offence. In that case, the offence was assaulting a member of the police force in the due execution of his duty. Dixon C.J. concluded that "the intent of the supposed offender must go to all the ingredients of the offence" (81), a conclusion with which Kitto J. agreed. The majority (Taylor, Menzies and Owen JJ.), largely under the guidance of long-standing authority on similar provisions, restricted the requirement of intent to the physical act of assault. Menzies J. (82) noted that intent and the absence of an honest and reasonable but mistaken belief are different conceptions. His Honour approached the ascertainment of the required mental state as to whether the person assaulted is a policeman in the due execution of his duty in this way (83):

"In his *History of the Criminal Law of England* (1883), vol. 2, at pp. 116 et seq. Sir James Fitzjames Stephen points out that the effect of ignorance as to a particular matter of fact connected with an alleged offence is a matter that varies with the definition of the particular offences and that where the legislation defining the offence is silent there is little apart from

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(76) [1976] A.C. 182.

(77) [1979] 2 N.S.W.L.R. 926.

(78) [1984] V.R. 187.

(79) [1979] W.A.R. 45.

(80) (1962) 107 C.L.R. 381.

(81) (1962) 107 C.L.R., at p. 386.

(82) (1962) 107 C.L.R., at pp. 399-400.

(83) (1962) 107 C.L.R., at p. 402.

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the general scope of the legislation and from the nature of the evils to be avoided to determine whether 'knowingly' is or is not to be implied in the definition of a crime. Here, I think, for the reasons I have already given, that the indication of the language used is that 'knowingly' is not to be implied and this is borne out by the aim of the legislation, which it may be inferred was to give policemen, whether in uniform or plain clothes, protection and freedom from interference in the discharge of their dangerous duties by imposing an additional penalty upon persons assaulting them who cannot excuse their conduct by proving honest mistake upon reasonable grounds."

Putting aside the onus of "proving honest mistake on reasonable grounds" — Menzies J. thought that the onus "at least initially" was on the defence (84) — his Honour was surely right to direct attention to the general scope of the legislation and the evils to be avoided in ascertaining which presumption applies. But those indicia may be equivocal. Dixon C.J., holding that the mental state required in *Reynhoudt* was "the intention to do the *whole act* which is prohibited" justified his view by "the nature of the prima facie principle of the common law, the natural application of the principle to the provision and the absence of anything to rebut it" (85). Where the text of the provision defining the offence, the general scope of the legislation and the nature of the evils to be avoided do not show which state of mind applies, the prima facie principle applies as it was expressed in *Turnbull* (86). But where the indicia are not equivocal, the statutory purpose must guide the ascertainment of the mental state. Of course, that is only a method of approach to the problem, not a solution. But an illustration of what might be regarded as the approach can be seen in the consideration that has been given to the crime of rape. If the question whether *Morgan* (87) should be followed were to arise for decision in this Court, I should think it relevant to consider whether the act involved in the crime includes non-consent as an integral part of the act involved or as an attendant circumstance and, if the latter, whether a woman's freedom to give or withhold consent to extra-marital intercourse is properly protected by holding a man liable to conviction for rape only if he has extra-marital intercourse knowing that the woman is not consenting or whether he should be liable to conviction for rape unless he has at least reasonable grounds for believing and believes that she consents. The policy of the law, to which Lord Simon of

(84) (1962) 107 C.L.R., at p. 399.

(85) (1962) 107 C.L.R., at p. 387.

(86) (1943) 44 S.R. (N.S.W.) 108.

(87) [1976] A.C. 182.

Glaisdale referred in *Morgan* (88), is a valid consideration when applied to statutory offences as it is when applied to common law offences.

It seems to me to be wrong to describe offences where the absence of an exculpatory belief is the relevant form of mens rea as offences imposing responsibility for negligence: cf. Howard, "Strict Responsibility in the High Court of Australia", *Law Quarterly Review* vol. 76 (1960), p. 566, cited in *Sweet v. Parsley* (89). Criminal liability in cases to which that form of mens rea applies is imposed for the intentional doing of the physical act involved in the offence in circumstances where the supposed offender has no reasonable grounds for believing that his conduct is innocent. That is a liability imposed for doing the act, not for failing to take care in inquiring into the circumstances. That kind of criminal liability arises usually when the physical act is of such a kind that it ought not be done unless there are reasonable grounds for believing that the doing of the act is innocent. That is not to resurrect the discarded division of crimes into the classes mala in se and mala prohibita; rather it is to ascertain whether the statute intends to prohibit the doing of the act involved unless the risk that it is attended by the circumstances which make it criminal can reasonably be thought to be excluded, or whether the statute intends not to prohibit the doing of the act unless it is known to be attended by those circumstances.

In the light of these principles, I turn to consider some of the cases from which the direction given to the jury in the present case was ultimately derived, and which established the principles which led the Full Court to dismiss the appeal. In *Bonnor* (90) the majority of a specially constituted Full Court of five judges held, on a charge of bigamy, the onus of proving that the accused honestly and reasonably believed that his former marriage was dissolved rested on him. There were dicta in *Maher v. Musson* (91); *Dowling v. Bowie* (92) and *Bergin v. Stack* (93) which supported this conclusion as well as judgments in cases prior to *Woolmington* (94). The majority of their Honours reconciled their conclusion with *Woolmington* by treating the existence of an exculpatory belief as a special excuse for the commission of the offence. Thus O'Bryan J., with whose judgment Herring C.J. agreed, said (95) with reference to *Woolmington* and *Mancini v. Director of Public Prosecutions* (96):

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(88) [1976] A.C., at p. 221.

(89) [1970] A.C., at p. 158.

(90) [1957] V.R. 227.

(91) (1934) 52 C.L.R. 100.

(92) (1952) 86 C.L.R. 136.

(93) (1953) 88 C.L.R. 248.

(94) [1935] A.C. 462.

(95) [1957] V.R., at pp. 247-248.

(96) [1942] A.C. 1.

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“Those cases in relation to the general question of onus of proof in crime do no more than establish that with exception of the sanity of the accused the Crown has the obligation of establishing beyond reasonable doubt every element that goes to constitute the offence charged. I do not read those cases as saying that, if there is a special excuse (such as mistake) which if in a particular case it exists will exculpate the accused from the penal consequences of an act which would otherwise be a crime, the Crown must negative such excuse in order to establish guilt.”

See also per Gavan Duffy J. (97). Barry and Sholl JJ. did not accept that, in bigamy, there was an ultimate onus on the accused to prove a defence of exculpatory belief (98). The placing of the onus on the accused was possible only upon the hypothesis that neither knowledge of the existence of a previous marriage nor the absence of an exculpatory belief was an element of the offence. The presumption of mens rea in statutory offences is, as we have seen, inconsistent with that hypothesis. But if, on a true construction of the statute, the presumption of mens rea is excluded so that the offence is proved by proof of the external elements alone, on what principle of statutory interpretation can it be implied that the offender is entitled to acquittal if he proves an exculpatory belief with respect to one of the external elements? So far as *Bonnor* supports the notion that an exculpatory belief is implied as an excuse in a statute creating an offence, it ought not be followed. For reasons earlier stated, the absence of an exculpatory belief is now seen as a form of mens rea implied in certain circumstances as an element in a statutory offence the onus of proving which rests on the prosecution.

To require proof of knowledge in cases of drug trafficking has been thought by some to increase unduly the difficulty of securing convictions. This concern was expressed in *Gardiner* (99), Hoare J. referring to “the virtual impossibility of proving the state of mind of an importer of narcotic goods in the absence of admissions which would be unlikely to be made by traffickers”. Lord Guest described a requirement of knowledge as “a drug pedlar’s charter” in *Warner* (1) in a passage cited by the Court of Criminal Appeal in New South Wales in *Bush* (2).

A pragmatic concern about unmeritorious acquittals does not warrant the imposition of strict liability. Such an approach is inconsistent with that expressed by Dixon J. in *Thomas v. The King* (3):

(97) [1957] V.R., at p. 234.

(98) [1957] V.R., at pp. 257, 264.

(99) [1981] Qd R., at p. 405; (1979)
27 A.L.R., at p. 151.

(1) [1969] 2 A.C., at p. 301.

(2) [1975] 1 N.S.W.L.R., at p. 319;
(1975) 5 A.L.R., at p. 410.

(3) (1937) 59 C.L.R. 279, at p. 309.

"The truth appears to be that a reluctance on the part of courts has repeatedly appeared to allow a prisoner to avail himself of a defence depending simply on his own state of knowledge and belief. The reluctance is due in great measure, if not entirely, to a mistrust of the tribunal of fact — the jury. Through a feeling that, if the law allows such a defence to be submitted to the jury, prisoners may too readily escape by deposing to conditions of mind and describing sources of information, matters upon which their evidence cannot be adequately tested and contradicted, judges have been misled into a failure steadily to adhere to principle. It is not difficult to understand such tendencies, but a lack of confidence in the ability of a tribunal correctly to estimate evidence of states of mind and the like can never be sufficient ground for excluding from inquiry the most fundamental element in a rational and humane criminal code."

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This passage was given some weight by Lord Reid in his dissenting speech in *Warner* (4) and, in my view, rightly.

In *Gardiner*, where the majority imposed strict liability on a charge of importing under s. 233B(1)(b), their Honours may have thought the difficulties of proof to be greater than they are. Knowledge of a thing that is in a bag or packet imported by a person into Australia and of the nature of that thing may be inferred from the fact of importation. In *Irving v. Nishimura* (5), in reference to some opium that was found in the bottom of some tubs brought ashore by the defendant, Griffith C.J. said:

"These goods were undoubtedly unlawfully imported. . . . in a case where goods are imported from abroad it is a difficult thing for the importer to say that he does not know what is contained in the packages that are imported, and which he claims as his own. It is open for him to show that, without his knowledge or consent, some goods that he never desired to have imported have been put in the package, but I think that when goods are imported the fact of importation is sufficient prima facie evidence that the importer knows what is contained in the packages."

Of course, whether an inference of knowledge can properly be drawn in a particular case and whether an evidential burden has passed to an accused to raise a reasonable doubt as to his knowledge depends on the state of the evidence in the case. There is no rule of law that in all circumstances proof of importation of a container in which prohibited imports to which s. 233B applies are found is sufficient to support an inference beyond reasonable doubt that the accused knew of the existence and nature of the prohibited imports that are found in it: cf. *Reynhoudt* (6). The nature of the container,

(4) [1969] 2 A.C., at p. 274.

(6) (1962) 107 C.L.R., at p. 401.

(5) (1907) 5 C.L.R. 233, at p. 237.

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the place and circumstances of its consignment to an Australian port, the opportunities of surreptitious interference with it, may affect the strength of the inference or prevent it from being drawn. If the relevant mens rea were the absence of an honest and reasonable belief, the accused would have to adduce evidence or be able to point to something in the evidence tending to show his belief and reasonable grounds for his belief that there were no prohibited imports to which s. 233B applied in the container, in order to raise a reasonable doubt as to the non-existence of that belief: see per Lord Diplock in *Sweet v. Parsley* (7).

The general principles which I would apply to the interpretation of s. 233B(1)(b) and (c) may now be summarized:

1. There is a presumption that in every statutory offence, it is implied as an element of the offence that the person who commits the actus reus does the physical act defined in the offence voluntarily and with the intention of doing an act of the defined kind.

2. There is a further presumption in relation to the external elements of a statutory offence that are circumstances attendant on the doing of the physical act involved. It is implied as an element of the offence that, at the time when the person who commits the actus reus does the physical act involved, he either — (a) knows the circumstances which make the doing of that act an offence; or (b) does not believe honestly and on reasonable grounds that the circumstances which are attendant on the doing of that act are such as to make the doing of that act innocent.

3. The state of mind to be implied under (2) is the state of mind which is more consonant with the fulfilment of the purpose of the statute. Prima facie, knowledge is that state of mind.

4. The prosecution bears the onus of proving the elements referred to in (1) and (2) beyond reasonable doubt except in the case of insanity and except where statute otherwise provides.

Application of the General Principles to s. 233B(1)(b) and (c).

The offence of importing under par. (b) of s. 233B(1) consists in the importing of “any prohibited imports to which this section applies”. The offence of having in possession under par. (c) consists in having in possession, without reasonable excuse, “any prohibited imports to which this section applies which have been imported into Australia in contravention of this Act”. These provisions were inserted into the Act by s. 11 of the *Customs Act* 1901 as part of a new s. 233B, which was made to apply “to all prohibited imports to

(7) [1970] A.C., at p. 164.

which the Governor-General by proclamation declares that it shall apply" (s. 233B(2)). The present provision inserted by the *Customs Act* (No. 2) 1971 defines the prohibited imports to which the section applies as "prohibited imports that are narcotic goods" (s. 233B(2)), that is, narcotic goods the importation of which have been prohibited under s. 50 (s. 51(1)). (I shall call them simply narcotic goods.) The penalties now provided for offences against s. 233B(1) are of great severity — in some cases, life imprisonment (see s. 235(2)). These offences are truly criminal in character.

The presumption that some form of mens rea is an element in these offences is strengthened by the severity of the penalty and the enormity of convicting a person of one of these offences if he were innocently ignorant of the contents of a container he had imported or of the nature of a substance that he had imported if the contents or the substance turned out to be narcotic goods. There is, no doubt, a judicial discretion to impose a minimum sentence. In *Beaver* (8) that circumstance was thought to lessen the weight to be given to the maximum penalty in deciding whether strict liability was imposed (9). But the manifest seriousness with which the legislature has viewed any conviction for one or other of these offences and the public obloquy which is suffered by any person who is convicted of either offence would make it unjust to convict a person who is not blameworthy. I respectfully agree with the observation of Lord Wilberforce in *Warner* (10):

"I can say at once that I am strongly disinclined, unless compelled to do so, to place a meaning upon this Act which would involve the conviction of a person consequent upon mere physical control, without consideration, or the opportunity for consideration, of any mental element. The offence created by the Act is a serious one and even though nominal sentences, or conditional discharges, may meet some cases, there may be others of entirely innocent control where anything less than acquittal would be unjust. This legislation against a social evil is intended to be strict, even severe, but there is no reason why it should not at the same time be substantially just."

I respectfully agree also with the view expressed by Starke J. in his dissenting judgment in *Parsons* (11) where he said:

"The proposition that a man may be incarcerated for life for an act which is not accompanied by mens rea is to me so startling that it requires the closest scrutiny of the language of the legislation that is said to produce that result."

Section 233B(1) is clearly a provision in which some form of mens

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(8) [1957] S.C.R. 531.

(9) [1957] S.C.R., at p. 542.

(10) [1969] 2 A.C., at p. 309.

(11) [1983] 2 V.R., at p. 507.

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rea is implied. It is necessary therefore to identify the acts respectively involved in the offences defined in pars. (b) and (c) and to ascertain the form of mens rea applicable to them and to the accompanying circumstances (if any) which are prescribed by those paragraphs.

Importing simpliciter is not an act nor is it defined to be a prohibited act in par. (b). Importing narcotic goods is an act; it is the act referred to in par. (b). The character of the act involved in the offence depends on the nature of the object imported. The paragraph thus impliedly requires an intent to do the prohibited act — importing narcotic goods — and thus requires knowledge of the nature of the object imported. It is impossible to divide the act involved in an offence under par. (b) into an act and circumstances attendant on its occurrence. The external elements of an offence under par. (b), unlike the offence considered in *Reynhoudt* (12), cannot be divided. An intention “to do the whole act that is prohibited” — the view of Dixon C.J. in *Reynhoudt* (13) — is, in my opinion, the only view which the language of par. (b) permits. The “prima facie principle of the common law, the natural application of the principle to the provision and the absence of anything to rebut it” lead to the conclusion that the state of mind required with reference to the object imported is knowledge that it is narcotic goods. If there were no mental element required with reference to the object imported but merely an intent to perform the physical movements involved in importation, many innocent persons could not escape conviction. The only mental element required in respect of the physical movement of goods into Australia that is involved in importing them is the voluntary bringing in of the goods with the intention of landing them here: *Reg. v. Bull* (14). Therefore an innocent passenger bringing home his baggage, an innocent airline or shipping company bringing in consignments of goods, innocent people unloading freight from aircraft or boats from overseas would be liable to conviction if narcotic goods had been placed by others in the baggage, the consignments of goods or the freight. Such an operation of the provision could not have been intended. As their Lordships said in *Lim Chin Aik* (15):

“Where it can be shown that the imposition of strict liability would result in the prosecution and conviction of a class of persons whose conduct could not in any way affect the observance of the law, their Lordships consider that, even

(12) (1962) 107 C.L.R. 381.

(13) (1962) 107 C.L.R., at p. 387.

(14) (1974) 131 C.L.R. 203, at pp. 220, 254.

(15) [1963] A.C., at p. 175.

where the statute is dealing with a grave social evil, strict liability is not likely to be intended.”

If, contrary to my opinion, the nature of the object imported were regarded as a mere circumstance attending the importation, I would regard knowledge of the nature of the object rather than an absence of an honest and reasonable but mistaken belief as to its nature to be the relevant state of mind. An innocent person importing a container which turns out to contain narcotic goods may have had no opportunity of taking precautions to ensure that no narcotic goods were placed in the container. He may hope that the container is free of narcotic goods but the circumstances may prevent him from honestly and reasonably believing that that is so. The exigencies of international trade and intercourse strengthen the inference that the Parliament intended that a supposed offender should not be criminally responsible unless he intended to import narcotic goods. That requirement casts on the prosecution the onus of proving, when the narcotic goods are imported in a container, that the supposed offender knew, at the time when he imported the container, that it contained or was likely to contain narcotic goods, or that it contained or was likely to contain an object that was or was likely to be narcotic goods. No onus of proof with respect to his state of mind rests on an accused person. It follows that the direction given on this count by Judge Tolhurst was wrong and that *Parsons* (16), on which the direction was based, ought not to be followed.

The offence created and defined in par. (c) can be distinguished from the offence of importing in three significant respects. First, “possession” is a term which implies a state of mind with respect to the thing possessed whereas importing does not. Secondly, the thing possessed must be not only narcotic goods but narcotic goods “which have been imported into Australia in contravention of this Act”, an element which is arguably a mere circumstance attendant on possession of narcotic goods. Thirdly, a person who would otherwise be criminally liable for an offence under par. (c) is entitled, on proof by him that he had a reasonable excuse, to be acquitted. These three features warrant separate consideration.

The actus reus of possession is not here in question, but I do not doubt that Nagle J. was right in *Bush* (17) where he said that what is required is that the narcotic goods “should be physically in the custody or under the control of the accused”. In *Director of Public*

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(16) [1983] 2 V.R. 499.

(17) [1975] 1 N.S.W.L.R., at p. 316;
(1975) 5 A.L.R., at p. 406.

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Prosecutions v. Brooks (18), an appeal based on a Jamaican statute that made it an offence for a person to have “in his possession any ganja”, the Judicial Committee held that when a person has physical custody or control of ganja the actus reus is established and that the mens rea by which that actus reus must be accompanied is knowledge that a thing is in the offender’s physical custody or control and that the thing is ganja (19). In *Warner* (20), on the other hand, the statute made it an offence for a person to have “in his possession a substance . . . specified in the Schedule to this Act”, and there it was held that the mens rea required was knowledge by the person that he had a substance in his custody or under his control but knowledge of the nature of the substance which he knew to be in his possession was not required. The question of what mental state is required to constitute an offence of having a prohibited substance in possession is a finely balanced one (*Brooks* (21)) but par. (c) falls on the *Brooks* side of the line. Paragraph (c) does not define the offence as possession of a substance — a formulation which arguably restricts the mental element of knowledge to the existence of a thing possessed. It is not possible to construe par. (c) as containing two elements — the existence of an object and its nature — and to require knowledge of only one of those elements, as in *Warner*. The offence is committed only if the supposed offender knows that the object possessed is, or is likely to be, narcotic goods. The dictum of Barwick C.J. in *Bull* (22), that knowledge of the nature of the thing possessed is not essential under s. 233B(1)(a) is, I respectfully venture to suggest, not supported by the text of par. (a) or the corresponding terms of par. (c) however valid it may be in relation to the text considered in *Warner*. The better view is stated by Aickin J. in *Williams v. The Queen* (23):

“It is necessary to bear in mind that in possession there is a necessary mental element of intention, involving a sufficient knowledge of the presence of the drug by the accused. No doubt in many cases custody of an object may supply sufficient evidence of possession, including the necessary mental element, but that is because the inference of knowledge may often be properly drawn from surrounding circumstances.”

In *Bush* (24), Nagle J. was unable to derive from the word “possession” a mental element which extends any further “than the intention inherent in de facto possession of such goods, namely, the intention to have exclusive physical control of some article which is

(18) [1974] A.C. 862.

(19) [1974] A.C., at pp. 866-867.

(20) [1969] 2 A.C. 256.

(21) [1974] A.C., at p. 865.

(22) (1974) 131 C.L.R., at p. 220.

(23) (1978) 140 C.L.R. 591, at 610.

(24) [1975] 1 N.S.W.L.R., at p. 324;

(1975) 5 A.L.R., at p. 415.

in fact narcotic goods or of some article or some place wherein such goods are in fact carried or contained or located. It is not inherent in that mental element that an accused should know, or suspect, or have reason to suspect, that an item in his de facto possession is narcotic goods." Nagle J. expressed his understanding of possession having regard to the context of the provision which allows for acquittals on proof of a reasonable excuse. His Honour found in the phrase "without reasonable excuse" the source of relief for innocent possessors. I find the source of relief in the notion of possession itself.

To require knowledge of the existence and nature of narcotic goods that a person has in his possession gives to par. (c) an operation that is, in practical respects, in harmony with the operation of par. (b). Paragraph (b) would be largely unnecessary if proof of knowledge under par. (c) were not essential. Possession, not importation, would be the charge more easily pressed against an importer.

The construction of par. (c) is not devoid of authority which bears on the second factor mentioned. Shortly after the 1910 Act came into force, it was argued in *Hill v. Donohoe* (25) that knowledge that the prohibited import had been imported into Australia in contravention of the Act was not an element of the offence created by par. (c). The argument was rejected by an unanimous Court. Griffith C.J. said (26):

"The section, as I am at present advised, means that any person who, without reasonable excuse, has in his possession any prohibited import which *to his knowledge* has been imported into Australia in contravention of the Act shall be liable, &c." (Emphasis added.)

Paragraph (c) has not been altered since 1910, so that the knowledge to which Griffith C.J. referred remains an element of the offence. The onus of proving that element was altered by the insertion of sub-s. (1A) by the *Customs Act* 1967. Since 1967, a person charged with an offence under par. (c) has borne the onus of proving that he did not know that the goods in his possession had been imported in contravention of the Act, but sub-s. (1A) did not alter the elements of the offence. If knowledge is required with respect to the element discussed in *Hill v. Donohoe* (27) — an element that is arguably an attendant circumstance — a fortiori knowledge must be required with respect to the element defined by the words "prohibited imports to which this section applies" and which is an integral part of the possession to which par. (c) refers. I

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(25) (1911) 13 C.L.R. 224.

(27) (1911) 13 C.L.R. 224.

(26) (1911) 13 C.L.R., at p. 227.

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do not understand the reference to the effect of sub-s. (1A) by Gibbs J. in *Milicevic v. Campbell* (28), to be inconsistent with this view. *Hill v. Donohoe* was distinguished in *Poole v. Wah Min Chan* (29), a case arising under s. 233(1)(d) of the Act. But, as Latham C.J. said (30):

“Section 233B(1)(c) is a very different provision from s. 233(1)(d) read in conjunction with sub-ss. (2) and (3) of that section, and *Hill v. Donohoe* construing s. 233B(1)(c), cannot, in my opinion be regarded as an authority upon the construction of s. 233(1)(d).”

Nothing was said to cast doubt on *Hill v. Donohoe*.

The third factor mentioned is the provision for proof of a reasonable excuse. Such an excuse is needed to exempt, inter alia, police and customs officers who have such prohibited imports in their possession from time to time in the course of their duty and innocent people who find themselves in possession of narcotic goods either by accident or in consequence of the actions of others. In *Warner* (31) there are some passages which suggest that an exempting provision for police officers acting in the course of their duty would have been unnecessary if mens rea were required as to the nature of the thing possessed. Lord Morris of Borth-y-Gest (32) said that no one could say that such a police officer would have “a guilty mind”, and Lord Pearce (33) said that the exemption would be unnecessary and absurd unless the Act was intending to penalize those “with no guilty intentions”. But, with respect, mens rea is not excluded because the actus reus is done with a good motive or without an evil motive. There are some observations in *Reg. v. Prince* (34) which suggest that mens rea connotes that the offender knows that he has no lawful justification or excuse for what he is doing (per Denman J. (35)) or that what he is doing is wrong — not necessarily illegal but wrong (per Bramwell B. (36)), but those notions of mens rea cannot now be assented to. Criminal punishment is not imposed to enforce the civil law, to deter the commission of torts or to suppress immorality; it is imposed to deter the commission of offences. Brett J. (37) took the view that the required state of mind relates to what makes the offender’s act a criminal offence although his Lordship defined mens rea in the form later

(28) (1975) 132 C.L.R. 307, at p. 313.

(29) (1947) 75 C.L.R. 218.

(30) (1947) 75 C.L.R., at p. 227.

(31) [1969] 2 A.C. 256.

(32) [1969] 2 A.C., at p. 295.

(33) [1969] 2 A.C., at p. 305.

(34) (1875) L.R. 2 C.C.R. 154.

(35) (1875) L.R. 2 C.C.R., at pp. 178-179.

(36) (1875) L.R. 2 C.C.R., at pp. 174-176.

(37) (1875) L.R. 2 C.C.R., at pp. 169-170.

adopted in *Bank of N.S.W. v. Piper* (38). His approach accordingly fastened on belief in facts which would if true make the offender's acts no criminal offence at all. His linking of mens rea to the external elements of the offence was supported by the earlier cases of *Reg. v. Green and Bates* (39) and *Reg. v. Hibbert* (40), to which his Lordship referred, and accords with modern principle.

It follows that an exempting provision is needed to protect persons who, in the course of duty or otherwise acting with innocent motives, would have the mental state required to convict them of an offence under par. (c). Is the exempting provision intended to go further and to make the absence of any form of mens rea a "reasonable excuse" so that "possession" is no more than physical custody or control of an object which answers the statutory description? Such a construction would involve a reversal of the onus of proof of mens rea, and that goes against the approach which has marked the administration of the criminal law since *Woolmington* (41). More to the point, the requirement of knowledge of the character of the object possessed flows not from a presumption that mens rea is implied in par. (c), but from the inherent requirement in "possession" of knowledge of what is possessed. The exempting phrase does not exclude the ordinary connotation of the term "possession".

I would therefore hold that *Bush* (42) was wrongly decided. On a count of possession under par. (c) the onus is on the prosecution to prove that an accused, at the time when he had physical custody or control of narcotic goods, knew of the existence and nature, or of the likely existence and likely nature, of the narcotic goods in question and that onus is discharged only by proof beyond a reasonable doubt. Again, dependent on the circumstances, proof that narcotic goods are in the physical custody or control of an accused may be sufficient to discharge the onus of proving the knowledge which is an element of the offence. It follows that the direction given on this count by Judge Tolhurst was wrong and that *Ditroia and Tucci* (43) on which the direction was based ought not to be followed. The appeal to the Full Court ought to have been allowed.

The matter has been brought here to decide the questions of principle involved. It must now be remitted to the Full Court to determine the merits of the appeal in the light of those principles. I would grant special leave to appeal, allow the appeal, set aside the

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(38) [1897] A.C. 383.

(39) (1862) 3 F. & F. 274 [176 E.R. 123].

(40) (1869) L.R. 1 C.C.R. 184.

(41) [1935] A.C. 462.

(42) [1975] 1 N.S.W.L.R. 298; (1975) 5 A.L.R. 387.

(43) [1981] V.R. 247.

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judgment of the Full Court of the Supreme Court of Victoria and remit the matter to that Court to hear and determine the appeal in accordance with the ruling of the majority in this Court.

DAWSON J. Section 233B(1) of the *Customs Act* 1901 creates a number of special offences with respect to narcotic goods. The two offences with which this case is concerned are those of importing narcotic goods (par. (b)) and possessing narcotic goods imported into Australia in contravention of the Act (par. (c)).

In relation to the offence of importing narcotic goods into Australia, the question which arises is whether the prosecution has to prove any mental state accompanying the importation. In other words, the question is whether mens rea is an ingredient of the offence to be proved by the prosecution. If it is not, the further question arises whether the offence is one of strict liability which, whilst not requiring the prosecution to prove mens rea in order to make out a case, allows the accused to raise honest and reasonable mistake by way of exculpation. To that extent a mental element is imported into an offence of strict liability short of requiring proof of mens rea by the prosecution. The mistake must involve a belief in a state of affairs which, if true, would make the act of the accused innocent. If the statute in neither of these ways requires any mental state to accompany the importation, then the offence is an absolute one and is complete once the prohibited act of importation is proved. Offences of strict or absolute liability are creatures of statute. The terms "strict liability" and "absolute liability" are not always used precisely and sometimes interchangeably, but used as I have used them, they are a convenient way of drawing the distinction to which I have referred.

The question whether an offence requires the prosecution to prove mens rea as an ingredient of the offence or whether the extent of the mental element involved is to be found in the defence of honest and reasonable mistake or whether it is an absolute offence, is essentially a question of the interpretation of the statute creating the offence. However, notwithstanding that the question may be stated as simply as that, various observations have been made in the cases about the way in which the task of interpretation should be approached.

It is said that the creation of a statutory offence takes place in the wider context of the common law which does require a criminal act to be accompanied by a guilty mind before the crime is complete. The nature of the mens rea required for particular crimes may differ, but it is sufficient to say that at common law criminal conduct must be accompanied by a state of mind or, more precisely, the state of

mind which the crime requires. Since a statute is to be construed as far as possible so as to observe principles embedded in the common law, there is support for those who think that there is a strong presumption that in creating a criminal offence the legislature intends a guilty intent appropriate to the nature of the offence to be an ingredient of the offence: see, e.g., *Cameron v. Holt* (44), per Barwick C.J. On the other hand, the view has been expressed that such a presumption no longer exists with modern statutory offences and that, at most, there is a weak presumption that the legislature intended to create strict liability rather than absolute liability by leaving available the defence of honest and reasonable mistake: see *Proudman v. Dayman* (45).

The English cases are of limited assistance in this area because the courts there have not taken up the defence of honest and reasonable mistake and see themselves as having to decide between an offence requiring mens rea to be proved as an ingredient and absolute liability which excludes guilty intent entirely. Although there are those in England who have been attracted by what has been called "the half-way house" of strict liability, the concept has not been adopted there: see *Sweet v. Parsley* (46). This is, perhaps, surprising since the modern application of the concept begins with *Reg. v. Tolson* (47) and, in particular, the judgment of Cave J. (48); see also *Sherras v. De Rutzen* (49). But it is unnecessary to pursue the divergent development of the law in England.

In this country it is well established by authority that whatever the presumption, if any, that mens rea, to be proved by the prosecution, is an ingredient of a statutory offence, there does exist a presumption that honest and reasonable mistake is to be treated as a ground of exculpation. It is commonly referred to as a defence, and to prove honest and reasonable mistake meant, in a common law setting and at a time when the ultimate burden of proof upon all issues did not rest so positively upon the prosecution, the same thing as establishing the absence of intent: *Bank of N.S.W. v. Piper* (50). Since the decision in *Woolmington v. Director of Public Prosecutions* (51), it is for the prosecution to prove beyond reasonable doubt the elements of a crime, including any mental element. That means that honest and reasonable mistake as a composite concept now has a part to play only in statutory offences where the

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(44) (1980) 142 C.L.R. 342, at p. 346.

(45) (1941) 67 C.L.R. 536, at pp. 540-541.

(46) [1970] A.C. 132, esp. at pp. 150, 158, 164.

(47) (1889) 23 Q.B.D. 168.

(48) (1889) 23 Q.B.D., at p. 181.

(49) [1895] 1 Q.B. 918.

(50) [1897] A.C. 383, at pp. 389-390.

(51) [1935] A.C. 462.

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legislature has excluded guilty intent as an ingredient of an offence to be proved by the prosecution, leaving the absence of mens rea to be raised by way of exculpation.

Thus at common law, because intent is an ingredient of a crime, it must be proved by the prosecution and a mistaken belief in facts which are inconsistent with the required intent does not have to be based upon reasonable grounds. Either the accused has a guilty mind or he does not, and if an honest belief, whether reasonable or not, points to the absence of the required intent, then the prosecution fails to prove its case: see *Reg. v. Morgan* (52). But the position is different with statutory offences containing no mental element to be proved as an ingredient of the offence. There, if the offence is not one of absolute liability, honest and reasonable mistake survives by implication as a basis of exculpation. It is, therefore, understandable why it continues to be referred to as a defence: it must normally be raised by the accused upon evidence adduced by him. It is also understandable in the current context of statutory interpretation (whatever may have been the explanation in a wider, historical setting) why the mistake to be exculpatory must be not only honest but also based upon reasonable grounds. For it is one thing to attribute to the legislature an intention to retain, as part of an offence, a mental element which does not have to be proved by the prosecution but may be negated by proof of a mistaken belief held upon reasonable grounds. It is another thing to say that the legislature intended a mistaken belief, however unreasonable, to have the same effect. I readily admit that there is an element of rationalization in this explanation, but I think that it puts the emphasis in the right place. The defence of honest and reasonable mistake stems from the common law requirement of a guilty mind and it is not, as it is sometimes put, a defence based solely or even primarily upon the absence of negligence: cf. *Reg. v. Sault Ste. Marie* (53); Howard, "Strict Responsibility in the High Court of Australia", *Law Quarterly Review*, vol. 76 (1960), p. 547.

There is, however, no justification since *Woolmington v. Director of Public Prosecutions* (54) for regarding the defence of honest and reasonable mistake as placing any special onus upon an accused who relies upon it. No doubt the burden of providing the necessary foundation in evidence will in most cases fall upon the accused. But it is not inconceivable that during the case for the prosecution sufficient evidence may be elicited by way of cross-examination or otherwise to establish honest and reasonable mistake or to cast

(52) [1976] A.C. 182.

(53) (1978) 2 S.C.R. 1299.

(54) [1935] A.C. 462.

sufficient doubt upon the prosecution case to entitle the accused to an acquittal. The governing principle must be that which applies generally in the criminal law. There is no onus upon the accused to prove honest and reasonable mistake upon the balance of probabilities. The prosecution must prove his guilt and the accused is not bound to establish his innocence. It is sufficient for him to raise a doubt about his guilt and this may be done, if the offence is not one of absolute liability, by raising the question of honest and reasonable mistake. If the prosecution at the end of the case has failed to dispel the doubt then the accused must be acquitted.

In *Maher v. Musson* (55) where the offence alleged involved the custody of illicit spirits, it was held that the magistrate might have acquitted the accused if he was "affirmatively satisfied" that the accused reasonably believed that the spirits were not illicit. That case was, however, decided before *Woolmington v. Director of Public Prosecutions*. The question of onus did not arise in *Thomas v. The King* (56), but in *Proudman v. Dayman* (57), Dixon J. recognized the clear direction which the law had by then taken in relation to the onus of proof of criminal charges when he said (58):

"The burden of establishing honest and reasonable mistake is in the first place upon the defendant and he must make it appear that he had reasonable grounds for believing in the existence of a state of facts, which, if true, would take his act outside the operation of the enactment and that on those grounds he did so believe. The burden possibly may not finally rest upon him of satisfying the tribunal in case of doubt."

See also *Iannella v. French* (59), per Windeyer J. It was, as I have said, in *Sweet v. Parsley* (60) that attention was given to the development in Australia of the concept of honest and reasonable mistake as a mode of exculpation and express mention was made by Lord Pearce (61) and Lord Diplock (62) of the ultimate onus of proof in the light of *Woolmington v. Director of Public Prosecutions* (63). It will be apparent from what I have already said that the remarks which commend themselves to me are those of Lord Diplock, who accepted the approach tentatively adopted by Dixon J. in *Proudman v. Dayman* and expressed it in these words (62):

"Unlike the position where a statute expressly places the onus of proving lack of guilty knowledge on the accused, the accused does not have to prove the existence of mistaken belief on the

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(55) (1934) 52 C.L.R. 100.

(56) (1937) 59 C.L.R. 279.

(57) (1941) 67 C.L.R. 536.

(58) (1941) 67 C.L.R., at p. 541.

(59) (1968) 119 C.L.R. 84, at
pp. 110-111.

(60) [1970] A.C. 132.

(61) [1970] A.C., at p. 158.

(62) [1970] A.C., at p. 164.

(63) [1935] A.C. 462.

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balance of probabilities; he has to raise a reasonable doubt as to its non-existence.”

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Despite the decision in *Reg. v. Bonnor* (64) that the accused has the burden of establishing honest and reasonable mistake on the balance of probabilities, Menhennitt C.J. in *Kidd v. Reeves* (65) (in which *Reg. v. Bonnor* does not appear to have been cited) held that the ultimate burden of proof, even where the defence relied upon honest and reasonable mistake, lay upon the Crown. In *Mayer v. Marchant* (66) a majority of the Full Court of the Supreme Court of South Australia expressed the same view as did the Court of Appeal in New Zealand in *Reg. v. Strawbridge* (67). To the extent that *Maher v. Musson* is inconsistent with this view it should, I think, no longer be followed.

It is against this background that it is necessary to consider the nature of the offence created by par. (b) of s. 233B(1) of the *Customs Act*. Whether or not there is a presumption that mens rea is an ingredient of a modern statutory offence, there are nevertheless accepted rules of construction which point in the same direction. One is that penal statutes are to be construed strictly. Another is that a statute is to be construed as far as possible in conformity with the common law. As Dixon J. put it in *Thomas v. The King* (68), “. . . when a statute introduced into our criminal code a new offence it should be understood prima facie to intend the offence to take its place in a coherent general system and to be governed by the established principles of criminal responsibility”. Those principles require, as I have pointed out, a guilty mind as well as a guilty act.

Rules of construction must give way to actual expressions of legislative intent, but almost invariably in this context such indications as there are require guilty intent as an ingredient of an offence rather than the contrary. Where some such word as “knowingly” or “wilfully” is used in the description of an offence, there is no difficulty in concluding that guilty intent is required. However, the absence of words such as these, even if the words appear in the description of offences created elsewhere in the enactment, does not mean that an offence is intended to be absolute: see *Sherras v. De Rutzen* (69).

Resort must then be had to the subject-matter or character of the legislation. Attempts have been made to categorize those offences which have been regarded as absolute, but the result is only helpful in a broad sense and the recognized categories cannot be regarded as

(64) [1957] V.R. 227.

(65) [1972] V.R. 563.

(66) (1973) 5 S.A.S.R. 567.

(67) [1970] N.Z.L.R. 909.

(68) (1937) 59 C.L.R., at p. 304.

(69) [1895] 1 Q.B., at p. 921.

exhaustive. It is generally accepted that statutes which create offences for the purpose of regulating social or industrial conditions or to protect the revenue, particularly if the penalty is monetary and not too large, may more easily be regarded as imposing absolute liability. This approach may be displaced if to regard an offence as one of absolute liability could not promote the object of the legislation by making people govern their behaviour accordingly: see *Lim Chin Aik v. The Queen* (70). Conduct prohibited by legislation which is of a regulatory nature is sometimes said not to be criminal in any real sense, the prohibition being imposed in the public interest rather than as a condemnation of individual behaviour. On the other hand, if a prohibition is directed at a grave social evil, the absolute nature of the offence may more readily be seen, particularly if proof of intent would be difficult and would represent a real impediment to the successful prosecution of offenders.

Paragraph (b) of s. 233B(1) of the *Customs Act*, which creates the offence of importing narcotic goods, finds itself in company with a number of related offences in the same sub-section in which reasonable excuse is made a defence and the onus of proving that defence is expressly placed upon the accused. Indeed, par. (c), to which it will be necessary to turn shortly, makes it an offence for a person, without reasonable excuse (proof of which lies upon him), to have in his possession any narcotic goods which have been imported into Australia in contravention of the Act. But the absence in par. (b) of any defence of reasonable excuse is equivocal. Reasonable excuse as a defence goes further than honest and reasonable mistake. For example, a person may intentionally seize and possess narcotic goods for the purpose of destroying them and so have a reasonable excuse for possessing them without any mistake on his part. Because reasonable excuse has a broader scope than a mere absence of intent, it is understandable that the accused should bear the ultimate burden of proving it. The fact that this defence is available in the case of related offences created by the same sub-section of the *Customs Act* does not, to my mind, suggest one way or the other the mental element, if any, which is necessary to constitute the offence of importing narcotic goods created by s. 233B(1)(b) unless, perhaps, the absence of a special provision of any kind in that paragraph, having regard to the fact that there is this special provision elsewhere in the same sub-section, indicates an acceptance that the ordinary principles of the criminal law, which require intent, should apply.

To import goods is to bring them into the country from abroad:

(70) [1963] A.C. 160.

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Lyons v. Smart (71). But if the goods are merely passing through en route to some place outside the country, they are not imported. Thus in *Reg. v. Bull* (72) it was held that goods are not imported into Australia within the meaning of s. 233B(1)(b) of the *Customs Act* until they are landed or brought within the limits of a port with the intention of landing or discharging them. Moreover, importation connotes a commercial purpose or at least an intention to use or consume the goods. Goods would not, to my mind, be imported if they were discovered on board a ship or an aircraft during a journey to Australia and were handed to customs officers on arrival here because their importation was prohibited. I mention these things because it seems to me that it is not possible as a matter of language to speak of importation without introducing some element of purpose or intention: cf. *White v. Ridley* (73). Even though that element of purpose or intention is usually an obvious inference from the surrounding circumstances, mere proof that goods have been brought into the country may, in some circumstances, not be enough.

It is difficult, therefore, to conclude that the nature of the offence created by s. 233B(1)(b) or its subject-matter is such as to indicate that the legislature intended to relieve the prosecution of the burden of proving any sort of intent. Because the prosecution must at least prove importation, there does not seem to me, in the absence of any indication to the contrary, to be any good reason why I should not conclude that intent as it is ordinarily required by the criminal law is an ingredient of the offence. That is to say, the prosecution is required to prove that the accused intended to do the forbidden act which, in the case of s. 233B(1)(b), is importing narcotic goods into Australia. Thus the intent must go not only to the act of importation but also to the nature and quality of the goods imported.

The only substantial reasons which there could be for reaching a contrary conclusion are, I think, that the international traffic in drugs is a pernicious evil and that the prosecution of an offence may be rendered more difficult by the requirement that it be proved in this way. Nevertheless the degree of evil involved in individual instances may vary markedly, as is shown by the range of maximum penalties which extend from a fine of \$2,000 to imprisonment for life according to the circumstances set out in s. 235. Although the offence created by s. 233B(1)(b) cannot be regarded as merely regulatory, it encompasses situations the gravity of which may not

(71) (1908) 6 C.L.R. 143, at p. 150.
(72) (1974) 131 C.L.R. 203.

(73) (1978) 140 C.L.R. 342, esp. at
p. 359.

in all cases call for the same severe approach. On the other hand, it does encompass crimes of the utmost gravity for which the penalty may appropriately be life imprisonment. The harshness of that penalty, however, tends to suggest that no departure from the ordinary principles of common law with regard to the proof of mens rea was intended.

Moreover, I do not think that, upon this view, the difficulty of proof will, in practice, be as considerable as might be imagined. Clearly, the fact that an accused has been found bringing narcotic goods into the country may ordinarily found an inference that the goods are being imported intentionally, notwithstanding protestations by the accused that he was unaware of their presence or of their nature or quality. At the very least, proof that the goods were brought into the country by the accused will ordinarily mean that there is a case to answer.

In the present case the accused was convicted upon one count under s. 233B(1)(b), the trial judge having charged the jury that the prosecution did not have to prove any state of mind or knowledge on the part of the accused. This was in accordance with the decision of the Full Court of the Supreme Court of Victoria in *Reg. v. Parsons* (74) which, of course, bound the trial judge. That decision followed the decision of the Queensland Court of Criminal Appeal in *Reg. v. Gardiner* (75) in which, however, it was held not only that the prosecution was not required to prove intent but also that it was not obliged to exclude the defence of honest and reasonable mistake of fact. In other words, the view was taken in *Reg. v. Gardiner*, as I read it, that the offence created by s. 233B(1)(b) of importing narcotic goods is one of absolute liability. This extreme view was not adopted by the trial judge, who delivered his charge upon the basis that an honest and reasonable mistake of fact afforded a defence, although he directed the jury that the accused must establish the defence on the balance of probabilities. I have expressed my views concerning the onus of proving such a defence and it will be clear that, in my opinion, the direction of the trial judge was in error in this latter respect. I should add, however, that it was in accordance with the decision of the Full Court in *Reg. v. Bonnor* (76), by which the trial judge was also bound. In any event, in view of the conclusion which I have reached that s. 233B(1)(b) requires the prosecution to prove an intentional importation of narcotic goods, honest and reasonable mistake did not, in my opinion, for the

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(74) [1983] 2 V.R. 499.

(76) [1957] V.R. 227.

(75) [1981] Qd R. 394; (1979) 27
A.L.R. 140.

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reasons which I have explained, arise as a distinct defence or ground of exculpation as it does with offences of strict liability.

The other count of which the accused was convicted was that of having in his possession, without reasonable excuse, narcotic goods imported into Australia in contravention of the *Customs Act*. That offence is created by par. (c) of s. 233B(1). As I have said, the paragraph places the onus of proving reasonable excuse upon the accused. The defence of reasonable excuse is, as pointed out earlier, wider than that of honest and reasonable mistake. It must, however, include honest and reasonable mistake, for in my view it is not possible to envisage an honest and reasonable mistake of the relevant kind which would not at the same time constitute a reasonable excuse for the possession of narcotic goods. The effect of this is to extinguish honest and reasonable mistake as a separate defence and, if it is relied upon as constituting a reasonable excuse within the meaning of the paragraph, to place the onus of proof upon the balance of probabilities upon the accused. Another aspect of the mental element which might otherwise be required by par. (c) is also dealt with by the statute. Section 233B(1A) provides that in any prosecution under par. (c), it is not necessary for the prosecution to prove that the accused knew that the relevant goods had been imported into Australia in contravention of the Act but that it is a defence if he proves that he did not know that the goods had been imported into Australia in contravention of the Act.

In these two respects the legislature has made express provision for the mens rea which is required to accompany the offence of possession of narcotic goods created by par. (c) and it is fair, I think, to draw the inference that it has not sought otherwise to limit the burden upon the prosecution or to impose any additional burden upon the accused. In particular, the paragraph requires proof of possession and there can be no doubt that the onus of proving possession rests upon the prosecution.

As with importation, possession is a concept which contains within it a mental element. As Aickin J. observed in *Williams v. The Queen* (77):

“It is necessary to bear in mind that in possession there is a necessary mental element of intention, involving a sufficient knowledge of the presence of the drug by the accused. No doubt in many cases custody of an object may supply sufficient evidence of possession, including the necessary mental element, but that is because the inference of knowledge may often be properly drawn from surrounding circumstances.”

(77) (1978) 140 C.L.R. 591, at p. 610.

The question arises, therefore, of what is sufficient knowledge of the presence of narcotic goods which, when accompanied by custody or control, will constitute possession for the purposes of par. (c). The answer to that question will, I think, complete any inquiry concerning the extent to which par. (c) requires proof of intent because the matter is otherwise expressly dealt with by the defence of reasonable excuse and by sub-s. (1A).

Possession may be an intricate concept for some purposes, but the intricacies belong to the civil rather than the criminal law. As was observed in *Director of Public Prosecutions v. Brooks* (78), the technical doctrines of the civil law which separate proprietary and possessory rights in chattels are generally irrelevant for the purposes of the criminal law. There the concept is a basic one involving the intentional exercise of physical custody or control over something. Knowledge is the basis of the necessary intent. There may be a sense in which physical custody or control can be exercised over something in ignorance of its presence or existence, but this has never been considered sufficient to amount to possession in law. This is what Griffith C.J. meant in *Irving v. Nishimura* (79), when he said:

“If a man has something put into his pocket without his knowledge, he cannot be charged with having it unlawfully in his possession, if that fact appears.”

Although intent must be based upon knowledge, it is the degree of knowledge required which poses the difficult question. When, as in the present instance, the exercise is one of statutory interpretation, the answer to the question will in the end depend upon the nature and form of the legislation.

I should, perhaps, break off at this point to say that I do not understand the decisions of this Court to indicate any different approach. In *Moors v. Burke* (80) the Court considered the summary offence of unlawful possession in the Victorian *Police Offences Act* 1915 in which the words “having in his actual possession” were used. Actual possession was contrasted with constructive possession or the right to possession, the latter being an unlikely refinement to find any place in a criminal offence. “Having actual possession” was said to mean (81) “. . . simply having at the time, in actual fact and without the necessity of taking any further step, the complete present personal physical control of the property to the exclusion of others not acting in concert with the accused, and whether he has that control by having the property in his present manual custody,

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(78) [1974] A.C. 862, at p. 867.

(79) (1907) 5 C.L.R. 233, at p. 237.

(80) (1919) 26 C.L.R. 265.

(81) (1919) 26 C.L.R., at p. 274.

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or by having it where he alone has the exclusive right or power to place his hands on it, and so have manual custody when he wishes". This somewhat verbose definition fails to mention expressly that knowledge is required before there can be possession in law and that there cannot be possession of an article in ignorance of its presence or existence, but such a requirement is implicit in the words used. "Complete present personal physical control" is hardly consistent with ignorance of that kind.

Similarly, in *Williams v. Douglas* (82), where a guest in an hotel was held to have in his possession gold bars which he had secreted behind an outlet under the bath in a communal bathroom, the term "de facto possession" (which was said to mean much the same thing as actual possession) was used by the majority to distinguish constructive possession and to extend possession beyond the notion of having something presently in one's hands. Once again it is implicit in the majority judgment that knowledge is necessary before there can be possession in law and the facts of the case indicate that the majority had this in mind.

For the purposes of the criminal law, and for directness and simplicity, it is not possible, to my mind, to think of a better working definition of possession than that given by Lord Diplock in *Director of Public Prosecutions v. Brooks* (83), where he said:

"In the ordinary use of the word 'possession', one has in one's possession whatever is, to one's knowledge, physically in one's custody or under one's physical control."

See also *Reg. v. Boyesen* (84). But that still leaves the question of the degree of knowledge required and, as the differences of opinion in *Reg. v. Warner* (85) show, it is not a question which is always susceptible of an easy answer. It is particularly difficult where a criminal offence involving the possession of something such as a narcotic substance is concerned.

The difficulty arises because a person may knowingly have custody or control of a receptacle containing a substance but be ignorant of the existence of the substance or of its presence in the container. He may, on the other hand, know of the presence of the substance, as when he has custody or control of a package which he knows contains something, but have no knowledge of the physical nature of the contents other than might be suggested by the form of the package. Then again, he may be aware of the obvious physical attributes of the contents but be ignorant of their quality; for

(82) (1949) 78 C.L.R. 521.

(83) [1974] A.C., at p. 866.

(84) [1982] A.C. 768, at p. 777.

(85) [1969] 2 A.C. 256.

example, he may not know that they are a narcotic substance rather than some innocuous substance.

In determining the extent of the knowledge required by s. 233B(1)(c) it is, as I have said, unnecessary to look beyond the concept of possession to some extra mental element which might be implied by reference to general principles of the criminal law. Except to the extent that intent is required by the use in par. (c) of that concept, it has otherwise been expressly dealt with by the defence of reasonable excuse and by sub-s. (1A). In this regard, the problem is not as difficult as that dealt with in *Warner's Case* because it may, I think, safely be concluded that, having provided the defence of reasonable excuse, the legislature intended that the knowledge required by the paragraph should be no more than is minimally necessary to establish possession, leaving it to the defence to bring forward matters of an exculpatory nature. Paragraph (c) does, I think, what the section considered in *Warner's Case* did not and is akin to what Lord Pearce had in mind when he said in that case (86):

"It would, I think, be an improvement of a difficult position if Parliament were to enact that when a person has ownership or physical possession of drugs he shall be guilty unless he proves on a balance of probabilities that he was unaware of their nature or had reasonable excuse for their possession."

See also *Sweet v. Parsley* (87).

Put quite plainly, I think that the proper construction of par. (c) is one which attributes to the concept of possession as it is used there, the bare minimum of knowledge. To construe the paragraph in that way is to recognize that in law knowledge is intrinsic to possession, but that the degree of knowledge required may vary according to context. The context of par. (c) is one in which the legislature has expressly dealt with intent other than by spelling out what is meant by possession and has done so in a way which indicates that it did not intend an extension of that concept beyond the requirements of basic legal principle.

This approach results in a slightly more restrictive view of the knowledge needed for possession than was adopted by the House of Lords in *Warner's Case*. After the decision in *Warner's Case*, a new Act was passed providing, in effect, for a limited defence of reasonable excuse and placing the onus of proof on the accused. In *Reg. v. Ashton-Rickardt* (88) it was held that this did not alter the onus resting upon the Crown to prove knowledge in order to establish possession as laid down in *Warner's Case*. But the change

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(86) [1969] 2 A.C., at p. 307.

(87) [1970] A.C., at p. 157.

(88) [1978] 1 W.L.R. 37; [1978] 1
All E.R. 173.

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in the legislation was made in the light of the decision in *Warner's Case* and something more explicit was needed to alter the meaning of possession as it had been construed by the House of Lords. The history of s. 233B(1) of the *Customs Act* is different (see *Beckwith v. The Queen* (89)) and the presence from the beginning of reasonable excuse as a defence in those paragraphs dealing with possession justifies, in my view, a different approach.

In my view, it comes to this. A person cannot, within the meaning of par. (c), possess something when he is unaware of its existence or presence. But he will, since possession is used in its barest sense, possess something if he has custody or control of the thing itself or of the receptacle or place in which it is to be found provided that he knows of its presence. He need not know what it is (other than to the extent necessary to know of its presence) nor its qualities. Thus a person will possess narcotic goods if he has, to his knowledge, custody or control of something which is in fact a narcotic substance, even if its packaging prevents him from knowing what it is and even if he does not know its quality as a narcotic substance. If, of course, he does not know what it is or does not know that it is a narcotic substance, he may have a defence of reasonable excuse under par. (c), but to point this out is only to emphasize that the use of the concept of possession in that paragraph was not intended to cover ground which would otherwise be covered by the defence expressly provided.

I have purposely left on one side the decision in *Reg. v. Bush* (90), in which the Court of Criminal Appeal of the Supreme Court of New South Wales held that possession in s. 233B(1)(c) means (91):

“... no more than de facto possession of the narcotic goods ... and that the mental element involved extends no further than the intention inherent in de facto possession of such goods, namely, the intention to have exclusive physical control of some article which is in fact narcotic goods or of some article or some place wherein such goods are in fact carried or contained or located. It is not inherent in that mental element that an accused should know, or suspect, or have reason to suspect, that an item in his de facto possession is narcotic goods. Accordingly, if narcotic goods are found in some bag or garment, or in some package or container, or in some room or place, over which he has the exclusive physical control appropriate to de facto possession, he has them in his possession for the purposes of s. 233B(1)(c). A claim by him that those goods were slipped into his bag or garment or were inserted into

(89) (1976) 135 C.L.R. 569, at pp. 579-580.

(90) [1975] 1 N.S.W.L.R. 298; (1975) 5 A.L.R. 387.

(91) [1975] 1 N.S.W.L.R., at p. 324; (1975) 5 A.L.R., at p. 415.

the package or container or planted in his room or other place without his knowledge, or suspicion, or reason for suspicion, are matters which he may establish to the tribunal of fact as, according to the circumstances, providing a reasonable excuse for such possession."

The decision in *Reg. v. Bush* was considered by a special court of five judges in *Reg. v. Rawcliffe* (92) and the passage which I have cited was approved. In *Reg. v. Kennedy* (93) the New South Wales Court of Criminal Appeal again affirmed the approach taken in *Reg. v. Bush*, although Roden J., who expressed disapproval of that approach, felt able to distinguish the case and also *Reg. v. Rawcliffe* upon the facts. *Reg. v. Bush* was also followed in Victoria in *Reg. v. Ditroia and Tucci* (94) and in Queensland in *Reg. v. Gardiner* (95).

I am bound to say that I cannot accept the formulation propounded in *Reg. v. Bush* of the meaning of possession in s. 233B(1)(c) of the *Customs Act*. If de facto possession means possession without any knowledge of the thing said to be possessed (and that is not the way the expression was used in *Williams v. Douglas* (96)), then it is a concept which is alien to the notion of possession which has hitherto prevailed, at all events in the criminal law. It has never been the position that a person can be in possession of something of which he knows nothing and par. (c) does not suggest anything different. As I have said, the availability of the defence of reasonable excuse justifies the conclusion that knowledge, admittedly a matter of degree, was intended to be limited to the minimum by the paragraph. But to go further would amount to more than a refusal to read into the paragraph a requirement of knowledge; it would be to read out a requirement which is already there. I do not think that such a result can be justified by any of the accepted principles of construction.

In neither *Hill v. Donohoe* (97) nor *Poole v. Wah Min Chan* (98), where this Court dealt with comparable provisions creating offences which were dependent upon possession, was the requirement of knowledge as the basis of possession denied. In *Reg. v. Bull* (99), Barwick C.J., who was in dissent, made an observation about s. 233B(1)(a) of the *Customs Act*. That paragraph creates the offence of having, without reasonable excuse (proof of which lies on the accused) possession on board any ship or aircraft any prohibited imports to which the section applies. His Honour expressed the view

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(92) [1977] 1 N.S.W.L.R. 219.

(93) (1979) 37 F.L.R. 356; 25
A.L.R. 367.

(94) [1981] V.R. 247.

(95) [1981] Qd R. 394; (1979) 27
A.L.R. 140.

(96) (1949) 78 C.L.R. 521.

(97) (1911) 13 C.L.R. 224.

(98) (1947) 75 C.L.R. 218.

(99) (1974) 131 C.L.R., at pp. 220-
221.

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that proof of the offence does not require proof of knowledge of the nature of the thing possessed. It is not entirely clear what his Honour meant by “the nature of the thing possessed” but the passage in question may be read consistently with the view which I have expressed, namely, that possession of something requires no more than that the accused should know that he has custody or control of that thing, even if he does not know what it is. Certainly Barwick C.J. was not suggesting that knowledge of the presence or existence of the thing said to be possessed is unnecessary.

Since the trial judge charged the jury in relation to s. 233B(1)(c) that possession meant no more than physical custody or control of a thing, there was, in my view, a misdirection, although the direction was in accordance with authority.

I would grant special leave to appeal, allow the appeal and, for the reasons given by the Chief Justice and Wilson J., remit the matter to the Full Court to proceed in accordance with the judgment of the Court.

Application for special leave to appeal granted.

Appeal allowed.

Order that the judgment of the Full Court of the Supreme Court of Victoria sitting in its criminal jurisdiction be set aside and that the matter be remitted to that Court to proceed in accordance with the judgment of this Court.

Solicitor for the appellant, *J. R. Gardner*, Director of Legal Aid.
Solicitor for the respondent, *Director of Public Prosecutions*.

R.A.S.